

UNITED STATES BANKRUPTCY COURT
EASTERN DISTRICT OF VIRGINIA
Alexandria Division

- - - - - X
:
In The Matter Of: :
:
TAYLOR MADISON FRANCOIS BODINE :
:
AKA TAYLOR FRANCOIS-BODINE :
: Case No. 21-11238-KHK
AKA TAYLOR BODINE :
: Chapter 7
AKA FRANCOIS BODINE CONSULTING, :
:
Debtor. :
:
- - - - - X

Wednesday, December 22, 2021

Via Remote Link

Deposition of:

TAYLOR MADISON FRANCOIS BODINE

a witness of lawful age, taken in the above-entitled
action, before Kevin Carr, Notary Public in and for the
District of Columbia, via Zoom Video Teleconference,
commencing at 10:01 a.m.

Diversified Reporting Services, Inc.
(202) 467-9200

APPEARANCES:

On Behalf of the United States Trustees:

KRISTEN S. EUSTIS, ESQ.

MICHAEL FREEMAN, ESQ.

1725 Duke Street, Suite 650

Alexandria, VA 22314

(703) 557-7227

On Behalf of the Debtor:

ROBERT SERGIO BRANDT, ESQ.

The Law Office of Robert S. Brandt

600 Cameron Street

Alexandria, VA 22314

C O N T E N T S

WITNESS

PAGE

Taylor Madison Francois Bodine

5

1 P R O C E E D I N G S

2 THE REPORTER: We're beginning the recorded
3 record.

4 MS. EUSTIS: Thank you. And would you swear
5 the witness in?

6 THE REPORTER: Ma'am, please raise your right
7 hand.

8 Whereupon,

9 TAYLOR MADISON FRANCOIS BODINE

10 was called as a witness and, having been first
11 duly sworn, was examined and testified as follows:

12 MS. EUSTIS: Thank you. Good morning. It's
13 December 22, 2021, at approximately 10:01 a.m. We are
14 here for the Bankruptcy Rule 2004 examination of Taylor
15 Francois Bodine in the bankruptcy case of In Re: Taylor
16 Francois Bodine, Case Number 21-11238 pending before
17 the United States Bankruptcy court for the Eastern
18 District of Virginia.

19 My name is Kristen Eustis. I'm an attorney
20 with the Department of Justice and represent the
21 Assistant United States -- or the Acting United States
22 Trustee for Region 4 in this matter. The U.S. Trustee

1 program is a component of the Department of Justice,
2 and we're responsible for overseeing the administration
3 of bankruptcy cases.

4 Mr. Brandt, would you please make your
5 appearance for the record? And you're on mute.

6 MR. BRANDT: Yes. Good morning. Robert
7 Brandt. I am counsel for Debtor.

8 MS. EUSTIS: Thank you.

9 EXAMINATION

10 BY MS. EUSTIS:

11 Q And Ms. Francois Bodine, could you please
12 state your name and current address for the record?

13 A Yes. My name is Taylor Francois Bodine. It's
14 42779 Travelers Run Lane, Leesburg, Virginia 20176.

15 Q Thank you. And Ms. Francois Bodine, have you
16 ever been deposed before?

17 A I have.

18 Q Okay. And so I'm just going to go over a bit
19 of ground rules for the deposition today. I will need
20 a verbal response to the question asked so that the
21 court reporter will be able to record your answers. No
22 nodding, no shaking your head, that sort of thing. If

1 you need to take a break at any point in time, please
2 let me know.

3 And you understand that you have just taken an
4 oath to the tell the truth, and that's the same here
5 today as if you were sitting in a court of law in front
6 of a judge?

7 A Yes.

8 Q Okay. Have you discussed the nature of the
9 deposition today with Mr. Brandt?

10 A Yes, in terms of understanding what the
11 purpose is.

12 Q Okay. And has he explained to you the nature
13 of these proceedings and the importance of giving
14 honest and accurate answers to my questions?

15 A Yes.

16 Q Okay. And if you don't understand a question,
17 or if I'm going too quickly, or you need me to repeat,
18 please don't hesitate to stop me and ask me to repeat
19 or rephrase.

20 And is there any reason today while -- why you
21 would be unable to answer the questions that I ask of
22 you?

1 A No.

2 Q I'm also going to ask you to allow me to
3 finish my question before you start to answer it;
4 otherwise, the court reporter will not be able -- and
5 will have a difficult time transcribing the answers to
6 the questions.

7 And then do you understand that if there is an
8 objection, that you are not to attempt to answer that
9 question until the objection has been fully stated for
10 the record, and that you have instruction from your
11 attorney whether or not to answer that question?

12 A Yes.

13 Q Okay. And is -- are you on any medication
14 today that might distort your thinking or your memory?

15 A I am not.

16 Q And is there any reason why you can't give
17 true and accurate answers today?

18 A No.

19 Q Okay. Is there anyone else in the room with
20 you today?

21 A No.

22 Q If anyone comes into the room with you, I need

1 you to please let me know.

2 A Okay.

3 Q And are you looking at anything other than the
4 screen upon which the deposition is taking place?

5 A I am not.

6 Q Okay. And unless I instruct you otherwise,
7 please don't look at anything or refer to anything else
8 while we are on the record, okay?

9 A Okay.

10 Q Okay. And you agree not to communicate with
11 anyone else besides me in any way while we are on the
12 record?

13 A Yes.

14 Q Okay. So no emails, no text messages, nothing
15 of that sort, okay?

16 A Yes.

17 Q Okay. So why don't we begin. Can you please
18 give me a bit of background on your education? Did you
19 graduate from high school?

20 A I did.

21 Q And did you graduate from college?

22 A I did.

1 Q And you received a law degree; is that
2 correct?

3 A I did.

4 Q Where did you go to law school?

5 A American University.

6 Q And what year did you graduate?

7 A I can't recall. I believe it was 20 -- it was
8 2018.

9 Q 2018. And did you take the bar exam?

10 A I did.

11 Q And did you pass the bar exam?

12 A I did.

13 Q Congratulations. And then when did you pass
14 the bar exam?

15 A The -- last February.

16 Q And in what jurisdiction?

17 A California.

18 Q And is that the only state in which you're --
19 are you licensed to practice in California then?

20 A I am submitting paperwork.

21 Q Okay. And is that the only state that you
22 will be submitting paperwork to be licensed to

1 practice?

2 A Yes.

3 Q And are you currently married?

4 A I am.

5 Q And what is your husband's name?

6 A Russell Bodine.

7 Q Okay. And what does he do?

8 A He works at -- for the Department of Defense.

9 Q And how long has he worked at the Department
10 of Defense, if you can recall?

11 A I can't recall.

12 Q Okay. And you -- do -- you have four minor
13 children; is that correct?

14 A I do.

15 Q Okay. So, Ms. Francois Bodine, what do you do
16 for a living?

17 A I am an entrepreneur.

18 Q Okay. And so do you have your own business
19 then?

20 A I am a partner with a business.

21 Q What is the name of that business?

22 A The business is Maxed and Matched, Inc.

1 Q And what does Maxed and Matched, Inc. do?

2 A It is a app that works to help people become
3 better in areas of fitness, nutrition, style, et
4 cetera, and then we match them. And right now, we're
5 working on using that business as a lead generation
6 business as well as our investors have requested us to
7 do so.

8 Q Okay. And is there an actual app, or is --
9 that you could download from, you know, the iTunes
10 store?

11 A No, per -- no. Per the pandemic, the
12 development has been slow, and so we just finished our
13 Version 1 of the app, but it's now to be beta tested.

14 Q Okay. And how long have you been, you know,
15 working as a partner with Maxed and Matched?

16 A I don't recall exactly the year, but the tax
17 returns would speak better to that.

18 Q Okay. So are you an employee with Maxed and
19 Matched?

20 A I am an -- one of the investors.

21 Q Okay. So you're an investor. Okay. And
22 before Maxed and Matched, what did you do?

1 A I had a matchmaking firm, consulting agency,
2 Francois-Bodine Consulting, otherwise known as FB
3 Consultant, Inc. And prior to that, a automobile
4 repair shop called R&T -- listed under R&T Ventures.

5 Q Okay. And you worked at the automobile repair
6 shop?

7 A I did.

8 Q And what did you do there?

9 A I did all of the front office things:
10 ordering, talking to customers, things like that.

11 Q Okay. And for how long did you work at the
12 automotive shop -- repair shop?

13 A I can't recall the exact number of years.

14 Q Okay. And FB Consultant, how long
15 approximately did you have that business?

16 A I'm sorry, I can't recall the exact number of
17 years. I don't want to speak incorrectly on the
18 record. The tax returns could be a good -- you know,
19 would be a great indicator of that so --

20 Q Okay. Okay. So let's move to your Petition
21 and Schedules. Do you recall filing for bankruptcy on
22 July 12, 2021?

1 A I do.

2 Q And in connection with that bankruptcy, you
3 signed a Voluntary Petition commencing the Chapter 7
4 case. Do you recall reviewing the Voluntary Petition?

5 A I do.

6 Q Okay. And you recall, excuse me, signing
7 Schedules in connection with the bankruptcy case that
8 listed your assets and liabilities?

9 A I remember that as part of the process. I
10 don't remember the particulars.

11 Q Okay. And I'll walk you through that in a
12 moment. Okay. So I'm going to -- let's see, hopefully
13 I can do this. All right, I'm going to share my
14 screen. All right. And are you viewing -- are you
15 able to see what is the Voluntary Petition?

16 A Yes.

17 Q Okay. So I'm going to scroll through this
18 now. If I go too quickly, please say so. So this is
19 the Voluntary Petition. Up at the top you can see,
20 excuse me, the header from the court with the case
21 number, the docket number, the date, and the time that
22 it was entered.

1 And so here is your name. Scrolling down,
2 saying that you're doing business as Francois-Bodine
3 Consulting. You're filing under Chapter 7. And then
4 scrolling down, on Part 7, that is your signature.
5 Does this document appear to be a true and correct
6 depiction of the document that you signed in connection
7 with your bankruptcy case?

8 A Yes.

9 Q Okay. And then going further, these are your
10 Schedules. So this is -- this first page is the
11 summary of your assets and liabilities. You'll see
12 this is still Document Number 1 that was filed in the
13 case and is part of the public record.

14 I'm going to continue to scroll down.
15 Schedule A/B is property. This lists all of your
16 assets. If you want me to slow down so that you can
17 look at them, please let me know. I'll try and go
18 slowly.

19 Your Wells Fargo checking account is listed
20 here. Your ownership interest in Maxed and Matched is
21 listed here. Okay. And now I'm going to scroll down
22 because I want you to see your signature. So I'm going

1 through here, I'll continue to quickly scroll.

2 This is all of the Schedule D, which are
3 creditors that have secured claims. Schedule E and F,
4 creditors who have unsecured claims. Okay. And then
5 your signature appears on Page 37 of 58. I just
6 scrolled past your Schedules I and J, which lists your
7 income and your expenses. And this is the declaration
8 about an individual debtor's schedules. Do you recall
9 reviewing these Schedules and signing them on July 10,
10 2021?

11 A Yes.

12 Q Okay. And the information contained in the
13 schedules and the petition at the time that you signed
14 them was true and correct; is that correct?

15 A To the best of my knowledge, yes.

16 Q Okay, okay. And then the next document that's
17 part of Document 1 is the Statement of Financial
18 Affairs. I'm going to scroll through.

19 Part 2 you disclose that for the year of 2020,
20 you made gross income of approximately \$5,000.00 in the
21 operation of your business. In 2019, the year before,
22 you grossed about \$25,000.00 for operating your

1 business. You disclosed certain litigation that's
2 pending against you. And then you list your interest
3 in the business entities here.

4 And then Part 12 is your signature. Do you
5 recall reviewing and completing the Statement of
6 Financial Affairs with your attorney and then signing
7 that document on July 10, 2021?

8 A Yes.

9 Q Okay. And at the time you signed them, you
10 understood that you had an obligation to answer the
11 questions contained therein both in the Petition, the
12 Schedules, and the Statement of Financial Affairs
13 accurately, correct?

14 A Yes.

15 Q Okay. And you recall testifying under oath at
16 a meeting of creditors on August 18, 2021, before the
17 Chapter 7 Trustee, Kevin McCarthy, is that correct?

18 A Yes.

19 Q Okay. I'm going to show you Schedule I. It
20 lists your employment status as employed; your
21 occupation at Maxed and Matched. Maxed and Matched is
22 located at your personal residence; is that correct?

1 A Yes, but it's not -- that's not our mailing
2 address, but I guess yes.

3 Q Okay. And what is the mailing address of
4 Maxed and Matched?

5 A It's an address on Fern Street in Arlington.

6 Q You said Fern Street or Firm?

7 A Sorry, Fern, F-e-r-n.

8 Q Okay.

9 A Sorry.

10 Q And is that -- that's okay. Is that a
11 physical address?

12 A It is a physical address for mail, yes.

13 Q Okay. Does Maxed and Matched have an office
14 there, or is it just a mailing address?

15 A We're -- everyone works virtually. It's just
16 a mailing address.

17 Q Okay. But if we weren't in the pandemic,
18 would that be a location where the employees would go?

19 A Sorry to cut you off. No.

20 Q Okay. Okay. And so your Schedule I lists
21 income as \$5,000.00 per month with an explanation that
22 -- and the business income is an estimation since

1 business varies from month to month and the corporation
2 is heavily indebted. Is that correct, you get about
3 \$5,000.00 a month give or take from Maxed and Matched?

4 A It varies. It varies, as it states there.

5 Q Okay. Okay. And then Schedule J lists
6 childcare at -- let me find Schedule J first. Okay, so
7 you have four children. It lists childcare at \$500.00
8 a month. What are those costs for?

9 A You said childcare at -- can you please
10 repeat?

11 Q Yeah. It's Line Item 8. Are you able to see
12 it? Do you need me to make it bigger?

13 A I think I can see it now. Let me see, \$500.00
14 a month, childcare and application costs. So any
15 babysitting services. That was a rather low
16 estimation, but yes.

17 Q Okay. And so are your kids in school?

18 A Now they are. One is not in school.

19 Q Okay. And so do you have a nanny or any -- or
20 other daycare services?

21 A I do.

22 Q Okay. And is your nanny's cost included in

1 that \$500.00 per month?

2 A No. At the time this was done, we were still
3 in the pandemic, and it was summer, so we were bearing
4 the brunt of caring for the kids ourselves.

5 Q Okay. I know how that goes. Okay. So at the
6 time, it was just babysitting services and whatnot that
7 would be included in the \$500.00?

8 A Yes.

9 Q Okay. All right. Now I'm going to move down
10 to this Statement of Financial Affairs, and then Part
11 2. Okay, right here. For calendar year January 1st to
12 December 31st, 2020, from operating a business, it said
13 the gross income was approximately \$5,200.00. And then
14 in 2019, it was approximately \$25,000.00. Is that
15 correct?

16 A I assume so, as per -- the tax records would
17 be a better indication, likely. I don't know the
18 numbers off the top of my head.

19 Q Okay. And would those amounts be income
20 generated from Maxed and Matched, or is that from FB
21 Consultant?

22 A In 2020. This would be from -- well, it

1 depends on the year. And so likely, I'm more or less
2 talking about Maxed and Matched. I don't -- there was
3 a winding up of FB Consultant, and so there may have
4 been some residual dollars coming from that. I'm
5 unsure.

6 Q Okay. And so you don't recall the exact year
7 where you had a wind-up of FB Consultant?

8 A I can't remember. I hadn't operated the
9 business for a bit but had to still pay some expenses
10 and close things down, so I'm not sure. I'm sorry.

11 Q Okay. But this -- so this isn't talking about
12 expenses, though, this is talking about income
13 generated that came to you. And so that's what I'm
14 trying to get at is to whether or not the \$5,200.00 in
15 2020 was from Maxed and Matched or FB Consultant, and
16 whether the income from 2019 was from -- of \$25,000.00
17 was from Maxed and Matched and F -- and/or FB
18 Consultant. If the answer is it could be a mix between
19 the two, that's fine. I mean, that's --

20 A It could be a mix.

21 Q Okay. Okay. And so from January, 2021 to the
22 petition date, which was July 12th of 2021, so roughly

1 the first seven months or so of this year, how much did
2 you earn from the operation of your business which --
3 Maxed and Matched?

4 A I'm not sure.

5 Q Okay. And any money that you would make from
6 Maxed and Matched, would that be deposited into your
7 Wells Fargo bank account?

8 A Not necessarily. Likely the Bank of America
9 bank account.

10 Q So --

11 A The -- mm-hmm.

12 Q So any money that you individually and you
13 personally would get from Maxed and Matched would be
14 put into the Maxed and Matched bank account?

15 A Can you repeat that? I'm sorry, I'm not
16 clear.

17 Q Okay. So I'm trying to get a sense, not
18 necessarily what Maxed and Matched made in the first
19 seven months of this year, but what you individually
20 made from your relationship with Maxed and Matched.
21 And so you said you don't know and you don't recall.
22 My question was whether or not any money that you would

1 get from Maxed and Matched would be deposited into your
2 personal Wells Fargo bank account.

3 A Yes and no. There are several things that go
4 into the Wells Fargo account, even from Maxed and
5 Matched. So something coming from Maxed and Matched to
6 the Wells Fargo account is not a great indicator that
7 it is my income.

8 Q So are -- who else's could it be because --
9 you said it could be for your husband?

10 A Correct.

11 Q Okay. Okay. Does your husband have a
12 separate bank account, other than the Wells Fargo
13 account?

14 A He does.

15 Q Just one?

16 A I'm not sure.

17 Q And are you a co-owner on that account?

18 A I am not.

19 Q Okay. And so he wouldn't deposit money from
20 Maxed and Matched into his own personal account?

21 A Not when he -- I'm sorry. The answer is no.

22 Q Okay. Okay. And in the last two years, you

1 had no other income from any other source, is that
2 correct?

3 A Correct.

4 Q Okay. And Item Number 20 on the Statement of
5 Financial Affairs states that within one year before
6 you filed for bankruptcy, were any financial accounts
7 or instruments held in your name for your benefit,
8 closed, sold, moved, or transferred? This is to
9 include checking, savings, money market, or other
10 financial accounts, certificates of deposit, shares in
11 banks, credit unions, brokerage houses, pension funds,
12 cooperatives, associations, and other financial
13 institutions.

14 You answered that question no; is that
15 correct?

16 A It is.

17 Q Okay. And Item 21, do you now have, or did
18 you have within one year before you filed for
19 bankruptcy, any safe deposit box or other depository
20 for securities, cash, or other valuables? And you
21 answered no. And that's correct?

22 A It is.

1 Q Okay. So now I want to ask you some questions
2 about your Wells Fargo account. You provided us with
3 copies of your personal bank account statements at
4 Wells Fargo, and you share that with your husband;
5 that's correct?

6 A Correct.

7 Q And do you have access to any other personal
8 bank accounts?

9 A I do not.

10 Q Okay. And do you have any personal credit
11 cards that you used prior to filing for bankruptcy?

12 A No, I've never used credit cards.

13 Q Okay. And so you said your husband has a
14 personal account that you are not a co-owner of,
15 correct?

16 A Correct.

17 Q Do you know where he has that account?

18 A I'm not sure.

19 Q Okay. And does your husband have any credit
20 cards that you are not a co-owner of?

21 A Yes.

22 Q And do you know where?

1 A Excuse me, I'm going to have to cough. Thank
2 you. Yes, he had or has, I think, a couple of Chase
3 cards and a Bank of America card as well.

4 Q Okay. And so does your husband use the Wells
5 Fargo account, or is that something that mostly you
6 use?

7 A He uses the Wells Fargo account.

8 Q Okay. And does he deposit his paycheck in the
9 Wells Fargo account?

10 A He does not.

11 Q That goes into his other personal account?

12 A It does.

13 Q Okay. So are there bank cards, you know,
14 debit cards issued in connection with your Wells Fargo
15 account?

16 A Yes.

17 Q And do each of you have one of those?

18 A I believe so.

19 Q Okay. And so do you use the Wells Fargo
20 account for your, you know, basic everyday expenses?

21 A I use the account.

22 Q Okay. So for your -- for -- if you have to go

1 to the grocery store, get, you know, food or clothing,
2 you use that account for those purchases?

3 A Yes.

4 Q Is there another account that you could
5 possibly use?

6 A Since the pandemic, it's the only one that I
7 have open.

8 Q Okay. And so what do you use the Wells Fargo
9 account for, in your own words?

10 A Household-type expenses. As you said,
11 grocery, things like that.

12 Q Okay. And how would money come to be
13 deposited into this account?

14 A The money would be deposited via a transfer,
15 likely a transfer from the Bank of America account of
16 Maxed and Matched, or if there's a check that is to be
17 cashed for my husband and I that has both of our names
18 on it, we would cash it in the Wells Fargo account.

19 Q And so does your husband ever deposit money
20 into this account?

21 A When we -- yes, he does.

22 Q And so you said that money would be

1 transferred in it from the Bank of America Maxed and
2 Matched account. Would you be the one initiating those
3 transfers from the Bank of America account into the
4 Wells Fargo account?

5 A I believe so, yes.

6 Q Okay. And why would you initiate those
7 transfers? Why would Maxed and Matched pay you or your
8 husband these moneys?

9 A Right. So my husband was the original
10 investor in Maxed and Matched before we had our first
11 family and friends round of investment. For us to get
12 started, he took out three credit cards for Maxed and
13 Matched, and pretty much those cards were used to their
14 max so that we could pay for everything it took to get
15 started.

16 The pandemic happened. Those, you know, cards
17 of course with interest still have balances. And so
18 every month he is paid a certain portion back for those
19 credit card payments that have to be made which are
20 indeed in the names of Maxed and Matched, et cetera.
21 So that's one of the occasions.

22 Another one of the occasions that happens is

1 if there's fraudulent activity on a Maxed and Matched
2 card that we're trying to use for business, or it won't
3 go through for some reason, there are many times where
4 the money will be transferred so that it could be paid
5 from another card, like the Wells Fargo card, and we
6 document those things for our tax purposes, which of
7 those things are business expenses.

8 Q Okay. And so you said your husband was an
9 initial investor, but his investment consisted of
10 taking credit cards out in the name of Maxed and
11 Matched, and then maxing those credit cards out; is
12 that correct?

13 A Yes.

14 Q Okay. And so Maxed and Matched is actually
15 paying back those credit cards that are in its own
16 name?

17 A Exactly.

18 Q Okay. So your husband wasn't personally
19 liable on those -- for those amounts on the credit
20 cards; is that correct?

21 A He is a guarantor of the credit cards, and so
22 therefore liable if it's not paid. It affects his

1 credit, it affects his work if those cards (audio
2 disruption) delinquent.

3 Q Okay. Are you a guarantor of those cards?

4 A I am not.

5 Q Okay. And so other than that, was there any
6 other investment by your husband -- a monetary
7 investment by your husband into Maxed and Matched?

8 A He's invested in every business. Any time
9 that there's any cash or something extra that his wife
10 needs him to put into a business idea that she has, he
11 invests in it so --

12 Q Okay. But no other concrete dollar amount --
13 I guess my question is, was there ever any note -- a
14 promissory note where Maxed and Matched agreed to
15 borrow, you know, X amount of money from your husband
16 and agreed to repay that over a period of time? Was
17 there any sort of documentation about these investments
18 that were made by your husband?

19 A I can't recall. However, we did feel very
20 good about the fact that they were cards that were in
21 his -- in the business name, and that those expenses
22 could easily be correlated back to businesses.

1 And so --

2 Q Okay. Okay. So going back to the Wells Fargo
3 card, there are other transfers from other individuals
4 coming into that account. So, for example, there's --
5 are you familiar with the name Jennifer Wong?

6 A Yes.

7 Q Okay. So she transferred \$500.00 into the
8 account. Do you recall what that would have been for?

9 A No, I can't.

10 Q And is she a personal friend?

11 A Yes. And also sometimes business-related
12 things, but yes.

13 Q Okay. And then Cherie Kelly, she deposited
14 \$3,000.00 into the account in February of 2020. Do you
15 recall -- is she -- is that a familiar name to you?

16 A It is.

17 Q And is she a personal friend?

18 A Yes.

19 Q And do you recall what the \$3,000.00 was for?

20 A I can't remember exactly.

21 Q Okay. And in March of 2020, Ardell Dickerson,
22 does that name sound familiar to you?

1 A I can't recall who that is. Do you have a
2 dollar amount?

3 Q \$3,000.00.

4 A I can't recall that.

5 Q Okay. And then in April of 2020, someone
6 named David Lytell, and in the memo says for a virtual
7 dating basic package. Do you recall -- does that name
8 sound familiar to you?

9 A It does.

10 Q What was that? I'm sorry.

11 A It does.

12 Q Okay. And who is Mr. Lytell?

13 A Someone who I helped with a virtual, you know,
14 dating situation at the very beginning of the pandemic.

15 Q Okay. And so when the memo refers to a
16 virtual dating basic package, is that something offered
17 by Maxed and Matched, or is that something that was
18 offered by FB Consultant?

19 A So that was something that was offered -- you
20 know, I can't really -- I can't remember. I have
21 assumptions, but I can't put my finger on it.

22 Q Okay. Did FB Consultant offer a virtual

1 dating basic package when it was operating?

2 A I can't recall. I know that many things
3 changed during the pandemic, and so the operations got
4 -- the way -- I guess the short answer is I'm unsure.

5 Q Okay. And you said you recall your testimony
6 at the 341 meeting in front of Mr. McCarthy who is the
7 Chapter 7 Trustee; is that correct?

8 A Yes.

9 Q And I apologize, I don't have a transcript of
10 that proceeding, but I do -- I did listen to it
11 yesterday, and your testimony was that FB Consultant
12 has been inactive and inoperating for over two years.
13 And that testimony was given in August of 2021, so two
14 years from that time would be August of 2019.

15 So these charges from April 20th for a virtual
16 dating basic package, again I'll ask -- I mean, based
17 on your testimony at the 341 meeting, I would think
18 that this would be Maxed and Matched since FB
19 Consultant wasn't operating. Does that sound right? I
20 mean, is this something that would have been offered --
21 a service that would have been offered by you through
22 Maxed and Matched?

1 A Likely yes. I couldn't recall what the
2 specific dates and things that were being given, but I
3 think that could be fair.

4 Q Okay. And then in July of 2020, there was a
5 \$5,000.00 payment into the Wells Fargo account from Gal
6 Kaufman. Does that name sound familiar?

7 A It does not.

8 Q Okay. So you don't know why someone named Gal
9 Kaufman or -- here let me -- bear with me. And these
10 are the documents that you produced to me in connection
11 with the consent order granting my 2004 examination. I
12 had requested your personal banking account statements,
13 and you provided them to me from January of 2020
14 through the petition date, which was July 12, 2021.

15 So this is the statement you'll see from --
16 it's your Wells Fargo account. Statement up at the top,
17 July 31, 2020. And here you'll see Gal Kaufman,
18 \$5,000.00 deposit. Are you able to see this, or do you
19 need it to be bigger?

20 A I can see it.

21 Q Okay. So right here, Gal Kaufman to Khan
22 Summiaya. And I apologize that I am not pronouncing

1 that name correctly. It's spelled S-u-m-m-i-a-y-a.

2 Are you familiar with that name?

3 A No, I'm not. I -- I'm not. And I am familiar
4 with the name, it's Gal, and that's why I didn't
5 understand what you were saying.

6 Q Oh, Gal.

7 A Gal Kaufman. So yes, I know who that is.

8 Q And is that a personal friend, is that a
9 client?

10 A It's a friend who -- yeah, it's a former
11 client who became a friend and wanted help with
12 something during the pandemic.

13 Q Okay. And what was the help that they wanted?

14 A Image consulting services.

15 Q And is that a service that you provided
16 through one of your businesses?

17 A It is a service that we are testing for the
18 style portion of the Maxed and Matched algorithm.

19 Q Okay. And --

20 A And oftentimes, these people could not --
21 Zelle the business -- the Maxed and Matched, and so
22 they just used an old phone number that they had for me

1 with Zelle so --

2 Q So this would go into your personal account
3 and -- I guess what I'm trying to get at is is this
4 money that is to you personally, or is this money that
5 is Maxed and Matched money?

6 A So it would depend. If it's a beta testing,
7 and it's my time, and I have to render the services
8 myself, there are times where if it's something that's
9 -- you know, sometimes some portion of it's mine,
10 sometimes a portion of it's Maxed. I don't know
11 specifically what all happened in this instance.

12 Q Okay. And on Part 2 of the Statement of
13 Financial Affairs that we just went through, do you
14 recall, you know, your Statement of Financial Affairs
15 says in all of 2020, you only made \$5,200.00 for
16 services that you provided by operation of a business.
17 And right here on July 20th, that's -- or July 21st,
18 you already had \$5,000.00.

19 So I guess my question for you is, you know,
20 there's \$5,000.00 right here. You only made \$289.00
21 more that whole entire year? I think we just went over
22 a \$900.00 payment that you received from David Lytell

1 in April of 2020 for dating services that you provided
2 to him. So is that \$5,200.00 figure indicated on your
3 Statement of Financial Affairs, is that accurate?

4 MR. BRANDT: Yeah. In all fairness, it's
5 slightly misleading because the \$5,200.00 landed post-
6 bankruptcy, right? The \$5,200.00 that you're pointing
7 to right now --

8 MS. EUSTIS: Is from July 31, 2020, Mr.
9 Brandt.

10 MR. BRANDT: I'm sorry.

11 MS. EUSTIS: Thank you.

12 MR. BRANDT: I was thinking 2021. Yes, I'll
13 go back to being quiet.

14 MS. EUSTIS: Thank you.

15 BY MS. EUSTIS:

16 Q So Ms. Francois Bodine, I'll ask you again.
17 Is it accurate that you only made about \$5,200.00 in
18 all of 2020 from the services that you provided to your
19 clients?

20 A Yes. And if you look at the tax returns,
21 those are also very accurate in terms of what was made
22 and expended. That being the case, then this would be

1 a portion of Maxed.

2 Q Okay. So your bank account statements are
3 incorrect; is that what you're saying?

4 A I did not say that.

5 Q Okay.

6 A I think I explained how clients would --
7 before you made your ending point there, I think I
8 explained how clients would -- who -- that they would
9 send a Zelle to whatever number they could find that
10 was easy to find instead of having to figure out the
11 specific name of Maxed, and how it was written, and
12 everything like that, and that's not something I could
13 really control. So I hope that makes sense.

14 Q Okay. So I'll just ask -- and then did you
15 transfer those funds immediately to the Maxed and
16 Matched account?

17 A I am unsure, because it -- the funds were in
18 that account, and if they were in the Wells Fargo
19 account, and the payments and transfers have not yet
20 been made about what was owed to the credit card
21 statements, they wouldn't be transferred back. You
22 only get a certain number of Zelles and transfers on

1 each of those bank accounts each month, and that would
2 be a waste.

3 Q Okay.

4 A And then I would incur fees.

5 Q Okay. Okay. So in August of 2020, there is a
6 deposit from coinbase.com in the amount of \$16,907.66
7 that has your name in the description. And I'll pull
8 that up for you if you're not familiar with it so that
9 you can see that.

10 My question is what is that for? It's right
11 in the middle of the page on August 20, 2020.

12 A August 20th. And it's saying that it is from
13 -- it's saying it's a deposit?

14 Q Of \$16,907.66 from coinbase.com, and then your
15 name is referenced.

16 A Okay. So that is part of the -- okay. So
17 that would be a Coinbase transfer that occurred from
18 Jenner Torrence, who is actually on the next line, who
19 is one of the investors in the business who was
20 liquidating and to send that -- yes.

21 Q What is coinbase.com?

22 A It is like a currency platform. I don't know,

1 I don't have --

2 Q So you don't have any cryptocurrency or
3 bitcoin?

4 A I do not.

5 Q Okay. So your testimony is that this was a
6 payment from Jenner Torrence?

7 A Yes.

8 Q Why would it come into your personal account?

9 A Because that's what information was set up
10 there.

11 Q I don't -- did Jenner Torrence have -- did she
12 know -- did she ever deposit money into the Bank of
13 America account for Maxed and Matched?

14 A Yes, but never this format. Never from this
15 way. Because that would mean that I would have had to
16 have been able to get access to the account numbers, et
17 cetera from the business bank account, which I don't
18 always have access to, and I sometimes have to get one
19 of the other parties to, you know, help me open it up.
20 So it was the path of least resistance type of --

21 Q Okay. So I don't see a corresponding transfer
22 of that \$16,000.00 to anyone really, it just remains in

1 the account. And I'm happy to scroll through, but did
2 you subsequently transfer that \$16,000.00 to Maxed and
3 Matched?

4 A I don't recall if that was the case. There
5 are also cases where from this bank account, I believe,
6 development has been paid, so I'd have to look at -- to
7 what the accounting was there. And our development
8 bills are to the tune of over \$20,000.00, so I don't
9 know if that was to offset as to why it stayed, or if
10 it became part of what would be returned to Russ. So
11 I'm not sure, I'd have to get a better picture.

12 Q Okay. And you do realize that you were
13 supposed to disclose, in connection with your
14 bankruptcy, that -- this is a personal bank account,
15 and you have close to \$17,000.00 coming into it within
16 one year of filing for bankruptcy. You have \$17,000.00
17 coming in. There's no explanation in your bank account
18 statements as to where that money's coming from and
19 what it's for.

20 That needed to be disclosed in your bank -- in
21 connection with your bankruptcy, and it was not. Why
22 was it not disclosed in connection with your bankruptcy

1 case?

2 A I'm unclear as to what you're asking. I've
3 been very forthcoming and more than eager to provide
4 every bank statement, to not redact anything, and I
5 don't know what you mean by what was not disclosed.

6 Q A \$17,000.00 payment from coinbase.com was not
7 disclosed in connection with your bankruptcy case that
8 went into your personal bank account. And that needed
9 to be disclosed.

10 A In what form, ma'am? The --

11 Q I'm asking the questions here, Ms. Francois
12 Bodine. So why was that not disclosed in connection
13 with your bankruptcy case?

14 A Ma'am, I'm asking kindly and respectfully for
15 a clarification. I think what I'm confused about is
16 when you say why was it not disclosed, then like the
17 \$3,000.00 that you've got -- came from Gal Kaufman was
18 -- what do you mean? I didn't know that I was supposed
19 to outline -- I think it asked me what my income was.
20 I look at my tax returns, et cetera to tell me what my
21 income was. I was very honest about that.

22 I'm trying to -- I'm not trying to be coy

1 either. I don't understand.

2 Q Okay. So I just went over the Statement of
3 Financial Affairs with you, the questions therein. And
4 the questions, you know, say what was your gross income
5 in 2019, 2020? Did you receive any income from any
6 other sources? Coinbase is another source. Jenner
7 Torrence is another source.

8 Any money that comes into your personal bank
9 account as income is income, and you're using that.
10 And so that's my question. Why weren't these disclosed
11 as income in connection with your bankruptcy case?

12 A Well, I would say that they are. If you look
13 at -- if you go through all of the statements that I've
14 given you, and you added up any of these amounts, they
15 would not exceed either the schedule document that you
16 said that says -- that I received \$5,000.00 a month for
17 something. It wouldn't exceed -- so that -- all of
18 this would not exceed that for the year timeframe.

19 None of this also speaks to the fact that I
20 did disclose and provided additional documents of
21 Jenner Torrence, an investor, the amounts of money that
22 he gave, and so this would be attributed to portions of

1 that. And I am being very honest and straightforward
2 when I'm saying in terms of the business, if there's
3 money that's owed back to Russ for anything that was
4 used with a credit card or anything in terms of if we
5 paid the development out of these bank accounts during
6 any of these months, all of that would stand to that.

7 This is not my income. I want to be very
8 clear on it. It's not personally my income. It's
9 income that's for Maxed. And I don't know that we've
10 found yet that it doesn't line up that that was owed to
11 us. I think that we've got to be very careful with
12 that because, I mean, you have to really be able to
13 draw those distinctions.

14 And as I said, you mentioned in your schedule,
15 you said, do you get about 5,000 something dollars a
16 month from Maxed. So then they were going to times
17 that times the months. So then how do we exceed that?

18 Q Okay. Thank you. So it's your understanding
19 -- it was your understanding then that only net income
20 needed to be disclosed in your -- in connection with
21 your bankruptcy and not gross income?

22 A It was my understanding that in terms of my,

1 you know, tax returns, et cetera, it really came down
2 to what it was that I made -- that I took home at the
3 end of the year. I didn't -- that's what my
4 understanding is. I mean, I couldn't --

5 Q So I'm not talking -- ma'am, I'm talking about
6 your tax returns. I'm talking about the bankruptcy
7 schedules that you filed with the court. And it
8 specifically asks in the question for gross income, but
9 it -- I'm asking -- I'm trying to get an understanding,
10 because clearly you disclosed in 2020 that you made
11 \$5,200.00 all year.

12 Your personal bank account statements say
13 that, you know, there's \$16,900.00 in August of 2020
14 coming into your personal bank account. There's no
15 corresponding entry where that money directly goes into
16 the Maxed and Matched account, which is a separate
17 legal entity from you personally. And obviously,
18 \$16,900.00 is larger than \$5,200.00 that was disclosed.
19 So I think I've gotten your explanation, and we can
20 move on.

21 There's also deposits into the account from
22 Square. And is Square like a separate account where

1 you would get account statements?

2 A Where do you see this? I'm sorry.

3 Q August 25th of 2020. Bear with me, I can
4 share my screen again.

5 A Thank you.

6 Q Okay. August 25th, Square Inc Cash App,
7 Taylor Bodine, \$700.00.

8 A I'm not sure. It's interesting because Cash
9 App is a friend-type app like a Paypal, so I would
10 assume it would be a friend paying back something.

11 Q Okay. Okay. And then in October of 2020 and
12 November of 2020, there were pretty significant cash
13 deposits in branch. In October you'll see there's a
14 \$2,000.00 in branch deposit; and then November of 2021
15 there's a \$4,000.00 deposit; and then \$1,400.00 cash
16 deposit in the ATM. Would that be you depositing those
17 amounts in the account?

18 A I can't recall who would be depositing the
19 amount, but I do know what those amounts are for.

20 Q Okay. And what are they for?

21 A So those amounts would be from Maxed, and
22 those would be the monthly amounts that are paid back

1 to, you know, Russ in terms of the credit card and, you
2 know, the other investments made. So that's what that
3 would be. And we probably at this point -- when this
4 happened, I remember these two distinct months had run
5 out of Zelle transfers because either they were made
6 to, you know, employees at other places, and now we
7 didn't have anymore of those. And to avoid a wire, a
8 \$45.00 charge, this was how we did it.

9 Q Okay. And so I guess my question is, if these
10 credit cards were in Maxed and Matched's name, why
11 didn't Maxed and Matched just make payments directly to
12 the credit card company? Why did they make payments to
13 you and your husband for you to make those payments?

14 A So I don't make the -- you said to -- why
15 would they make payments to me and my husband for me to
16 make the payments. I don't make the payments. My
17 husband makes the payments. My husband is a very, very
18 meticulous guy, and he wants to be responsible for the
19 payments that are being made. As he -- as far as he's
20 concerned, and I agree, he took those out as the
21 personal guarantor and wants to be responsible that
22 they are paid on time and with no issue.

1 Q Okay. I guess that's my question, though. I
2 mean, does your husband have access to the Maxed and
3 Matched accounts?

4 A He has viewing access. I don't know all the
5 particulars of what he has. Now one of those credit
6 cards, one of the three, is a credit card associated
7 with the Bank of America, and because it was taken out
8 with Bank of America, it's paid directly inside that
9 account to that Bank of America card because it lets
10 you do that at any interface.

11 Q Okay.

12 A But the other two are Chase, and there's no
13 account on it. So, for instance, those accounts are --
14 I think an important note here is those accounts are
15 maxed out, those credit cards, the two Chase payments.
16 And so what he did was he shut those down. He no
17 longer has that sort of interface access to it online.
18 It's got to be -- there -- there's a way that he has to
19 send it now. It's not because he's -- he's not an
20 active member, so there's -- that's also part of it.
21 It's not as straightforward.

22 Q Okay.

1 A And it follows his social security, et cetera
2 to be able to get into that, and that's his business.

3 Q Okay. And I hear you but, you know, again I
4 don't see any corresponding immediate transfer out of
5 the account after, you know, the money is -- this cash
6 is deposited in, I don't see any, you know, payments
7 really.

8 So, you know, I guess maybe that's the
9 question. Do you know what accounts or who the credit
10 card accounts are Maxed and Matched? You said he took
11 out three credit cards. There's one that's Bank of
12 America. Do you know the other two?

13 A So the other two are Chase. Ms. Eustis, you
14 ask a great question, because I was just going to make
15 that point. Now, those two credit cards, he has been
16 linked -- or I'm trying to see which credit cards -- I
17 mean, which bank accounts he pays them out of. It
18 could very well be, and I believe it will very well be
19 maybe the -- maybe one of the other things because
20 that's how it was set up before.

21 And so I wish I could -- I wish you almost
22 requested those documents because I could have shown

1 you those credit card statements, and the payments, and
2 the names. That would have been better. I'm sorry,
3 ma'am, please go ahead.

4 Q Thank you. I am still caught up, though, on
5 why the payments weren't just made directly by Maxed
6 and Matched to the credit card companies that, you
7 know, it was indebted to. Do you know -- I understand
8 that happened. Do you know why it wasn't just made
9 directly from the Maxed and Matched Bank of America
10 account -- Bank of America account to those credit card
11 companies?

12 A Yes, ma'am. And I tried to speak to that a
13 bit. But because those accounts are no longer active,
14 so the difference between the two Chase and also the
15 Bank of America card is I believe the Bank of America
16 card is not maxed out, and so that account is still
17 open. And so we can make a payment directly, which can
18 be seen. But that's made monthly directly.

19 But the other two accounts are closed out.
20 They have to be paid in a different way. To even get
21 access to that, to call it in, to do anything, you've
22 got to have my husband's social, his security

1 questions, and all these things.

2 And so when you say, you know, why didn't we
3 do it directly because it's Maxed and Matched's card,
4 well they don't let a company just take out a credit
5 card, it has to be a guarantor. So when they -- when
6 you call in and do anything, they want Russ Bodine to
7 be doing it not me. So that --

8 Q So you couldn't initiate a bank wire transfer
9 from the Bank of America Maxed and Matched account to
10 Chase?

11 A I don't have those informations, ma'am. No.
12 And like I said, the guarantor, the person who is on
13 the card, who in this case just happens to be my
14 husband, wants it -- wants to handle the payments to
15 make sure that they get paid. I -- and I think --

16 Q Okay.

17 A I -- and I -- may I?

18 Q Sure, you can go on.

19 A Sorry. And I think the big -- I think the
20 point that I really want to make here is the fact that
21 whether he makes the payment first and then these
22 payments are reimbursements to him or whether it came

1 from the same account or whatever, he's still owed the
2 money that's paid to Maxed and Matched, the figure it
3 the figure.

4 Q Okay. Okay. And so -- okay. So the amounts
5 for Maxed and Matched coming into the account, I think
6 you've explained could be to repay any one of these
7 three credit cards. Would there be any other reason
8 why Maxed and Matched would be transferring money into
9 your personal Wells Fargo account?

10 A Yes, ma'am. Because there are also times when
11 things get imperfect, and I know this is why
12 accountants are so meticulous about how they want us to
13 do things. But there's times when we are personally
14 paying for expenses of Maxed and Matched when, for
15 instance, the card won't work or something.

16 Or we're out and we don't have that -- access
17 to that business credit card -- debit card or something
18 like that, and we make the payment, and then all those
19 things meticulously get, you know, sent to the
20 accountant during tax time where we talk about oh, this
21 was actually for advertising, this was a travel expense
22 on behalf of, you know, Maxed. These kinds of things.

1 And now boy, is it is really coming back to
2 bite me in the butt. But -- not being as meticulous
3 about that. But yes, those are the things.

4 There's also one other. During the course of
5 the timeframe that we're looking at, and pardon me
6 because it's been so long, but there's also a time at
7 which, I've got to see when, but we made a development
8 payment from our personal account, so that was a
9 development payment to the Maxed and Matched app
10 creators. And so there was also at a point a
11 reimbursement of a sort of that. And I believe that
12 that company is called Analog Digital. (Crosstalk.)

13 Q Okay. And do you recall when that was made?

14 A I don't ma'am. I'm so sorry.

15 Q Okay. And so, I mean -- and I'm just trying
16 to get a sense. I've gotten your bank statements from
17 January, 2020 through the petition date. I didn't see
18 any large transfer, and I don't think -- you know, I
19 could be wrong, but I don't recall seeing anything to
20 Analog Digital. Do you think it could potentially be
21 before 2020?

22 A It could be before -- it could be. And, you

1 know, the pandemic time, I can hardly keep up with
2 what's even going on anymore. But yes, ma'am, it could
3 be.

4 And if -- and I don't know how this whole
5 thing works, if I have an opportunity to provide that
6 to you, but if I did and I could show you that, then we
7 could see where, hey, that was never paid back to us,
8 and so maybe now you see it here. Because there's
9 times when there's money coming in to Maxed and
10 Matched, and then there's times when you look where
11 there's nothing that happened.

12 And so during the earlier time, that '19 and
13 '20, there was no money. So then there was a lot of
14 stuff that we were owed back. So once even we paid the
15 credit cards and things. I hope that answers. I'm
16 sorry.

17 Q No, that's okay, it's helpful. So was there
18 an agree -- and I guess that's the question. I know
19 it's difficult when you're, you know, your own business
20 owner, and it may seem strange drafting agreements
21 between your own company and then yourselves
22 individually. But I guess that's the question. Is

1 there anything documented between you and your husband
2 individually and Maxed and Matched the entity, you
3 know, for you individually to make these payments on
4 its behalf and then, you know, knowing that Maxed and
5 Matched is going to be on the hook to repay you for
6 those amounts.

7 So specifically, for any money that you paid
8 to Analog Digital, was there any written agreement
9 between you and your husband and Maxed and Matched to
10 make that payment and then to be repaid subsequently
11 from Maxed and Matched?

12 A So the agreement that we would rely on for
13 this would likely be those original convertible note
14 and shareholder agreements when we're -- when
15 everything is divided as it is kind of does speak to
16 the amount of money that was invested. That's what we
17 utilized.

18 And you make a great point, I mean, which was
19 one that I was going to say which is that, you know,
20 besides that agreement, it wasn't as if there was a
21 promissory note from myself to the company signed by me
22 as the company, managing partner, then signed by me as

1 myself. I didn't even know how that would actually
2 operate.

3 Q Okay. Okay. And I may have missed this. Do
4 you recall what the amount of that payment to Analog
5 Digital would have been? You know, is it tens of
6 thousands, a couple thousand?

7 A So it would be probably tens of thousands.

8 Q Okay.

9 A May -- to 20,000.

10 Q And would that have been included as part of
11 the investment that was, you know, included in that
12 agreement -- the original stockholder agreement that
13 you provided to us, or is that part of like the initial
14 investment or --

15 A No, ma'am.

16 Q Okay.

17 A I believe that would be the subsequent.

18 Q Okay.

19 A We formed the company first, got the bare
20 bones and pieces, and then we did a -- we had a meeting
21 where we did a sketch of an MVP of what the product was
22 going to look like, so there was a lot of investment

1 that was made there. And then after we had that, then
2 we took it to the development company. So I believe
3 that would be after.

4 Q Okay. And again, I think we discussed the
5 transfers coming into this account that were, you know,
6 earmarked I'll say for your husband. And would Maxed
7 and Matched have made any payments into your husband's
8 other bank account?

9 A No, ma'am. It -- no. Because I think the
10 Zelle transfers are set up for that one account.

11 Q Okay. Okay. And then just going back to the
12 Statement of Financial Affairs, you disclosed -- bear
13 with me -- it asks within the four years before you
14 filed for bankruptcy whether you own any business or
15 have, you know, any interests in any business. And you
16 listed Maxed and Matched, Inc., Francois-Bodine
17 Consulting, and FB Consultant, Inc. Is that correct?

18 A Yes, ma'am.

19 Q Okay. And those are -- you don't have any
20 other interest in any other entities?

21 A No, ma'am.

22 Q Okay. And then I know I'm going to -- it's

1 going to sound like -- I know we've been into a lot of
2 stuff already, so it might sound as though I'm going
3 backwards here, and I apologize for that. But I just
4 want to make sure I get this into the record.

5 I'm going to share my screen again. This is
6 the consent order that was entered by the Bankruptcy
7 Court granting U.S. Trustee's motion for a 2004
8 examination. You'll see at the top, Docket 33, your
9 case number, and the date that it was entered.

10 Pursuant to that order, I requested documents,
11 tax returns for 2017 through 2020, which you did
12 provide; signed copies of tax returns for 2017, 2018,
13 and 2019, and 2020, which you did provide. With
14 respect to the tax returns, though, you did provide
15 unsigned copies, so I just wanted to get for the record
16 that you did, in fact, sign the tax returns that were
17 provided and submit them to the proper taxing
18 authority.

19 A Yes, ma'am. That was likely the -- because
20 the accountant maybe sent that copy before they, you
21 know, hit the send with the signature on it. If I need
22 to get you the signed copy, I'm more than happy to.

1 Yes, ma'am.

2 Q Okay. Thank you. Okay. And then I also
3 requested a list of all entities that are owned or
4 controlled by you or for which you had an interest.
5 Documentation regarding the formation of any entities
6 within the last five years that you have owned or had
7 an interest in, and bank account statements for those
8 entities from January, 2020 to October of 2021, and
9 then copies of books and records for FB Consultant,
10 Francois-Bodine Consulting, and Maxed and Matched. Is
11 that accurate?

12 A Yes, ma'am.

13 Q Okay. And as I indicated, you did provide the
14 tax returns. You did provide your personal bank
15 statements. You provided bank statements for Maxed and
16 Matched. You did not provide bank statements for FB
17 Consultant, Inc. And I won't -- I'm going to stop
18 referring to them as separate entities because it's my
19 understanding that they are one in the same; is that
20 correct?

21 A It is.

22 Q Okay. And then you provided documents for an

1 entity called R&T Ventures, which you previously
2 testified was an autobody shop that you and your
3 husband owned, is that correct?

4 A Correct.

5 Q And that entity is no longer operating?

6 A Correct.

7 Q And did you ever receive compensation from
8 that entity?

9 A I did.

10 Q Okay. And were you doing any of your
11 consulting work at the time that you were employed by
12 R&T Con -- or R&T Ventures?

13 A There was a small overlap. I think I had just
14 started the business as I was leaving -- you know, as
15 we were ending the automobile business.

16 Q Okay. Okay. And then I'm also going to share
17 my screen again and show you just -- why isn't this
18 popping up? Okay. This was your email -- whoops.
19 Okay. This is the email that you sent to me with your
20 -- with the documents, and then your responses to the
21 requests that I made.

22 And so now I want to turn to FB Consultant.

1 And so -- so yes, FB Consultant, Maxed and Matched, and
2 R&T Ventures were what you disclosed for the entities
3 in which you had an interest in. And then bank
4 statements for FB Consultant, you indicated here that
5 the account had been closed, and so you could not
6 provide those statements. So -- and that the accounts
7 were closed prior to January of 2020. Is that correct?

8 A Yes.

9 Q Okay. And so it is fair to say then that FB
10 Consultant stopped operating prior to February of 2020
11 -- or January of 2020? Excuse me.

12 A Yes.

13 Q Okay. And -- okay. Okay. So turning to FB
14 Consultant, when was this business formed?

15 A I'm so sorry, I'm not so great with the dates.
16 We'd have to look at the formation. I don't remember.

17 Q Okay. Bear with me, let me see if -- I'm not
18 sure if you provided that to me or not.

19 A I provided (crosstalk) --

20 Q I can --

21 A -- corporation.

22 Q Okay. Okay. And so is this the -- FB

1 Consultant, Inc., safe to say that it was formed on
2 March 14, 2018?

3 A Yes.

4 Q Okay. Okay. So March 14, 2018, it was
5 formed. And you also provided a screenshot from the
6 State Corporate Commission that indicates that it was -
7 - that it's inactive, but there was no date associated
8 with that. Do you recall when it stopped operating or
9 when you stopped operating FB Consultant?

10 A I don't. Not off the top of my head. But I
11 think when I submitted -- when you asked the question
12 about the bank statements, in that little paragraph, I
13 did say that I didn't have such and such month of the
14 year because the business had stopped. So I think
15 that's also a good place to --

16 Q Okay. And who are the owners of FB
17 Consultant?

18 A Just myself.

19 Q Okay. Were there any employees?

20 A There were people who were contractors but no
21 employees.

22 Q Okay. And did you have agreements with those

1 contractors, written agreements?

2 A No.

3 Q Okay. And how many -- what would you -- I
4 mean, were they friends, or did you -- what kind of
5 contractors -- what kind of work would they would do?

6 A So they were oftentimes other matchmakers, and
7 we would do -- you know, we would help each other with
8 clients, et cetera. And so they were not like personal
9 acquaintances or anything like that, we just knew kind
10 of the industry standard, would work with each other in
11 such and such a way and -- yes.

12 Q Okay. And did the business have an office?

13 A It did not.

14 Q Did it have any assets?

15 A No, ma'am.

16 Q Okay. And so we're saying it was formed in
17 March of 2018, and then it stopped operating before
18 January of 2020, just as approximate dates. So that's
19 approximately a two-year period.

20 A Mm-hmm.

21 Q And can you tell me approximately how much --
22 over that two-year period how many clients you had?

1 A I don't recall. I don't recall specifically.
2 I do remember that this is around the time of Lani Hay
3 and Paul Gleit and the lawsuits that they had. So the
4 business was operating very slowly, very -- not much
5 was going on, I mean, after that type of press. So I
6 can't speak to the exact number of clients, but it
7 definitely was not the most booming time.

8 Q Okay. And so, I mean -- and I'm just trying
9 to get a sense here, so I won't hold you to it, but is
10 it more than 20, you know, less than 10? Any sort of
11 sense --

12 A I'm so sorry, I'm trying to be so careful and
13 so honest here. I don't want to say the wrong thing.
14 I can't say, and here's why. Because just like you saw
15 in the Wells Fargo where there was the David Lynette
16 (sic) or whatever that paid the \$900.00, there would be
17 small, little on-off things like that where someone
18 would ask me to do that type of service, and so I can't
19 keep track of them. And to me, that's very different
20 in my mind than sort of a bigger client like a Paul or
21 a Lani.

22 So I can't -- I don't want to say the wrong

1 thing because it -- I don't know, it could be less than
2 10, it could be more than 20, 30. I don't know.

3 Q Okay. And so did you provide more services
4 than just, you know, the matchmaking services that were
5 outlined in those three creditor's complaints?

6 A I did little things. For instance -- for
7 example, if someone wanted help with their online
8 profile or something like that, I would do things like
9 that.

10 Q Okay.

11 A (Audio disruption.)

12 Q And then how were you compensated from FB
13 Consultant?

14 A FB Consultant was pretty straightforward. It
15 would be -- you know, my pay would be less the expenses
16 of the recruiters and the other matchmakers or any
17 travel, and then the rest would be, you know, what is
18 mine, you know, after the taxes are paid, of course.

19 Q Okay. And did it -- it did have a bank
20 account then?

21 A It did, yes. I provided you the FB --

22 Q So no, you provided me with Maxed and Matched.

1 You said that the FB account had been closed prior to
2 2020, and so you didn't provide those accounts. But I
3 -- again, I only requested January, 2020 forward. So
4 you did provide an answer to that, so I just wanted to
5 know where the bank account was.

6 A Oh, sorry. So that bank account would have
7 been at Wells Fargo or Bank of America. And you're
8 exactly right, it's because the dates that you
9 requested, it was no longer operable. But prior to
10 that, there was a bank account, yes, ma'am.

11 Q Okay. So it could have been either a Wells
12 Fargo or a Bank of America; you don't recall which?

13 A Yes, ma'am.

14 Q Okay. And so the money that your clients paid
15 to you, they would pay it in the -- into the FB
16 Consultant account?

17 A Yes, ma'am. Sometimes they would make a
18 payment into a personal account as well. It's kind of
19 interesting, when you're in business for yourself, and
20 you're seen as -- of course, it's a corporation, but
21 you're seen as a sole proprietor, people sometimes just
22 try to treat it that way and will just pay you however,

1 and then I'm stuck to clean up the mess of figuring it
2 out.

3 Q Okay. And did you invoice your clients? Did
4 you send them invoices as to the services? How would
5 that work?

6 A Not all the time for smaller things, you know,
7 things that are under a couple thousand dollars, maybe
8 not. Things that are more, there would be a contract
9 sometimes. Sometimes not. I mean, it just depended on
10 the situation. And it depends on how I knew them.

11 Q Okay. So did FB Consultant have a website?

12 A The website was the francoisbodine.com.

13 Q Okay. And is that still active then?

14 A I'm not sure. I never handled that; I had a
15 web developer person that was a third party that was
16 supposed to be working on getting it down for a while.
17 I don't know.

18 Q Okay. So as part of the winddown of FB
19 Consultant, you didn't ensure that that website was
20 shut down?

21 A Well, it's interesting, all these things
22 happened during the pandemic time and trying to reach

1 out to people to get them to do things that was on the
2 list, certainly something requested. I mean, again,
3 I'm not the tech person, even in Maxed and Matched, so
4 I have no idea how you do that, other than to delegate
5 it out. But it was --

6 Q Okay. So you don't know whether there's any
7 foot traffic on the account still? Like you don't get
8 -- do people reach out to you based on that account and
9 say that, you know, we found you on this website, and
10 we want you to provide services? Do you get any of
11 those inquiries?

12 A Sometimes people send me things to my personal
13 email.

14 Q Was your personal email address listed on the
15 -- that webpage?

16 A It was listed on various things that we did
17 sometimes for like press inquiries or things that like.

18 Q Okay. Okay. So going back to how your
19 clients paid, did FB Consultant ever accept cash,
20 Paypal, bitcoin, use Cash App, that sort of thing?

21 A So the -- so cash, check, wires. And then the
22 smaller amounts -- when I say smaller, I mean under

1 2,000, they would do it however. I don't know the
2 specifics of what those people -- how they would get
3 it.

4 Q Okay. And I guess -- so did -- I think we
5 talked about earlier you have a personal Cash App
6 account?

7 A I have a Cash App account because probably a
8 client at some point needed that. I don't -- right.

9 Q And that's an account where you can maintain a
10 balance, right? I mean, you can get account statements
11 from that and maintain a balance just as you would a
12 bank account?

13 A No, ma'am. Cash App, you have to send the
14 money to your bank. I don't think it accumulates a
15 balance.

16 Q Okay.

17 A It's like the Venmo or something like that. I
18 don't know.

19 Q Yeah, so I don't use Cash App, I use Venmo,
20 and I know that you can maintain a balance on there, as
21 you would a bank account, and just, you know, people
22 can pay you, and you maintain that money, and then you

1 can pay people with that money, and it wouldn't ever
2 show up on your bank account. And so I guess, do you
3 have a Venmo account, too?

4 A I do not.

5 Q Okay. So it's my understanding that Cash App
6 kind of works the same as that, and that's something
7 that would have also needed to have been disclosed in
8 connection with your bankruptcy if you do have a Cash
9 App account. Is there any particular reason why you
10 didn't disclose that in connection with the case?

11 A Yes, ma'am. I wasn't under the impression
12 that I was supposed to, in all honesty, because it's
13 not a -- it doesn't hold a balance. It's not my
14 understanding that it even holds a balance. And
15 anything ever from Cash App or anything like that would
16 be transferred into my Wells Fargo, which I gave you
17 all those. I had no idea -- I didn't know that -- I
18 even would be happy to submit it and go back as far as
19 you need. I mean, there's nothing I'm hiding there.

20 I did -- I honestly didn't know that. And it
21 doesn't -- and I would be really interested in seeing
22 the language where it clarifies that so clearly.

1 That's really confusing. So that means would people
2 have to provide their Apple Pay? Like I don't -- like
3 how far does that even go? That's kind of confusing.

4 Q Okay. So going back to FB Consultant, does it
5 have -- did it have credit cards?

6 A I don't recall. It's been -- I don't recall.
7 It's been so long ago.

8 Q Okay. So you don't know?

9 A No, I don't. No, ma'am.

10 Q Okay. And were there bank cards, debit cards
11 associated with the bank accounts of FB Consultant?

12 A Yes, ma'am.

13 Q Okay. And were you the only one with access
14 to those?

15 A The -- yes, ma'am.

16 Q Okay. And so other than the bank accounts,
17 were there -- were any books and records maintained?
18 And so, you know, what I'm looking for here -- you
19 know, and I had requested this in connection with the
20 2004 exam, and I didn't really receive anything. So,
21 you know, invoices to clients, expense logs, files,
22 documents, operating records, financial statements,

1 letters from accountants, ledgers, client lists, that
2 sort of thing. Did FB Consultant have books and
3 records?

4 A I'm sure the accountant did during the time we
5 were operable, maybe. But what we have defaulted to in
6 everything, including these current businesses, is
7 during the tax time, the accountants look at all of the
8 things in and out of the business account. They look
9 at all of the things in and out of our personal account
10 where we had to pay personal business expenses. They
11 look at all of those things and then make their ledger
12 and their statements and do that.

13 I mean, we're a startup, and at the time when
14 I had the FB Consultant, I was a -- you know, I'm an
15 Inc., but I'm really just one person. And so things
16 are not done necessarily that way for a small business.
17 It would be really hard to keep up with. And I know
18 the -- that lawyers -- you guys think like that because
19 if your -- in your own practice, you have to keep up
20 with billing, et cetera. But in a small business,
21 that's not how it goes. We always default to the bank
22 account because you can see everything there is to see.

1 In terms of expenses, it wasn't clear on that
2 statement that you wanted to see all the expenses for
3 Maxed and Matched. But if you look at the schedule --
4 if you look at the bank -- if you look at the tax
5 statement, I believe it's down further at the end, it
6 goes over all the expenses, and it links -- lists out
7 marketing, travel, all these things. So to me, that's
8 the juicy stuff, I mean, that's where it is. So I --

9 Q Thank you. So no, I mean, what I'm looking
10 for here, like books and records. I mean, I understand
11 it was a half-page summary of, you know, \$222,000.00
12 worth of expenses in terms of Maxed and Matched. I
13 mean, I understand, you know, you may think that tells
14 a lot but, you know, it doesn't really give much really
15 other than a high-level overview of, you know, the
16 deductions that your entity took.

17 But going back to FB Consultant, you know, I
18 mean, like I said, I'm looking, you know, whether or
19 not you invoiced your clients, whether or not you kept
20 a log -- I mean, an Excel spreadsheet or something
21 just, you know, for your own business records purposes,
22 you knew who your clients were. You know, if you're

1 telling me you didn't keep those kinds of records,
2 which is what I'm hearing, I mean, that -- that's the
3 answer.

4 But, I mean, that's what I was looking for is,
5 you know, any sort of operating documents that you
6 would go to, you know, on a day-to-day basis or any
7 records that you kept, you know, about that. I
8 understand you're saying, you know, you can look at the
9 bank account statements and see what kind of expenses
10 were incurred but, you know, I also know small business
11 owners that keep expense ledgers that correspond with
12 the bank account statements as they're being incurred.

13 So that's the kind of thing that I was looking
14 for when asking for business records. And so does --
15 did FB Consultant have any of those records?

16 A So keeping in mind, FB Consultant only had,
17 you know, a handful of clients at a time, so when you
18 speak to, well, how would you know who your clients
19 are, it was easy to know how they were. I mean, the
20 other thing is that there were a -- maybe like a
21 contract or something for the bigger clients between,
22 you know, myself and that. And then that would be a

1 document that -- you know, but there's not like an
2 invoice.

3 Q Okay. And so yes, those contracts would have
4 fallen in that. So if you do -- and do you still have
5 copies of those contracts?

6 A Not from the date -- not -- the dates that you
7 request, they're not relevant to those dates.

8 Q Well, I think for --

9 A And if we -- and it just is really -- it
10 didn't explicitly say anything about a contract. And I
11 want to -- I mean, I don't know how this is going to
12 go, but I want to just say this for the record. It's
13 really important to me to be very honest here about
14 everything, and during this whole process. Nobody
15 things they're going to file for bankruptcy.

16 But in everything, even as someone who didn't
17 keep the records as meticulously as you say some small
18 business owners have, when I tell you that I poured
19 through everything, and it took me hours and many, many
20 days, and a lot of photocopying, and a lot of things.
21 It was one of the most painstaking things I've ever
22 done. And I made no qualms at all to not give you -- I

1 did everything I could to give you everything.

2 And so I don't know how this works because I
3 can't talk to my attorney right now. But I will say
4 that if there is something that you feel that I need to
5 present to you so that you have a clearer picture, I am
6 more than happy to present it. I'm not shapeshifting
7 or hiding the ball.

8 But my understanding of the things that you
9 requested was what I had. I just want to say that, and
10 then I'll be quiet.

11 Q And that's fine, ma'am. And I appreciate
12 that, and I appreciate everything that you provided to
13 me, and providing it before the date that I requested
14 that it be provided, and over the holidays. So I do
15 recognize that, and I do appreciate that.

16 And yes, just, you know, for your own benefit,
17 if there is anything else that I'm requesting, you will
18 have the opportunity to provide those documents to me
19 if, you know, you want to provide a clearer picture to
20 me, anything that we've discussed today, you're -- you
21 know, you can do that.

22 So I'm happy to hold the 2004 exam open at the

1 end of the day today so that you can provide those
2 documents to me and, you know, we can go from there.
3 But we can talk about that after the fact as well. But
4 if that gives you a little bit of -- you know, at least
5 a little bit of ease as we continue, I can at least say
6 that for now.

7 Okay. And so I guess if -- since you were,
8 you know, in charge of the FB Consultant, if there were
9 to have been any documents, you would have been the
10 one, you know, maintaining those, is that correct?

11 A Yes, ma'am.

12 Q Okay. And so you did provide the tax returns
13 for FB Consultant for 2017, 2018, 2019, and 2020. So
14 in 2017, there was no income and no expenses. We had
15 gone over that it was formed in 2018, so that's fine.

16 In 2018, you had a great year. I mean, the
17 tax returns disclosed gross income of \$386,000.00,
18 which is, you know, great. And then it went down to
19 \$43,000.00 in 2019. So, you know, what happened in
20 that one-year period? You know, it's before the
21 pandemic, before anyone knew of -- you know, that a
22 pandemic was going to hit. What happened to the

1 business during that time period?

2 A Yeah. To add a little bit of levity, it was
3 the year that hell opened up for myself and my
4 business. Paul Gleit was the client. He then had his
5 -- you know, we had a contract dispute, okay, where
6 he's then also alleging fraud. All of that was made
7 public. That was brought in front of the New York Post
8 and several other nationally known entities. And my
9 business, which was doing very well, came to a
10 screeching halt. So that was my pandemic before the
11 pandemic.

12 Q Okay.

13 A And that's why I'm here having this bankruptcy
14 discussion with you because be it not for that amount
15 of money, I wouldn't be here having this discussion.

16 Q Okay. And how much was this suit -- was that
17 the one that a judgment was entered in June of 2021?
18 I'm not trying to trip you up, I'm just --

19 A No, no, no, that's fine. There's only one
20 where a judgment was entered, so I would assume yes.

21 Q Okay. And I can -- yeah, okay, so that was
22 Paul Gleit. And what was the amount of that? I guess

1 I can look on your Schedule E real quick.

2 A So after he accumulated his interest, and
3 fees, and et cetera, I think we're at 400 something
4 thousand dollars.

5 Q Okay. Okay. So after that in 2019, the gross
6 was \$43,000.00, and then 2020, \$5,200.00. So was --
7 were these lawsuits the reason why FB Consultant wound
8 up its operations?

9 A Yes.

10 Q Okay. So -- and I guess coming back to your
11 website then, I'm just thinking through this now. You
12 said that the website was francoisbodine, so is that
13 your personal website, or was that a website for FB
14 Consultant? I just want to get that clear in my mind.

15 A It was a website for FB Consultant and
16 Francois-Bodine Consulting. Mm-hmm.

17 Q Okay.

18 A Yeah.

19 Q And I apologize if I keep mispronouncing your
20 name today. I get that all the time with my name, so I
21 know it can be frustrating.

22 Okay. And so your 341 meeting that we

1 discussed, you know, you indicated that FB Consultant
2 has been inactive for at least two years. And so is
3 that just inactive per the Virginia State Corporate
4 Commission, or is that, you know, inactive in terms of
5 business operations? You know, I know the tax returns
6 say, you know, in 2019 there was \$43,000.00 in income
7 and \$5,000.00 in income in 2020. I just want to get a
8 sense of, you know, whether or not it was operating
9 during that time.

10 A Right. So no, it wasn't operating during that
11 time. And, you know, I think any person who maybe I
12 worked with before knew me from that space know -- is
13 somebody who sort of moved to Maxed and Matched and are
14 beta testing, you know, there. But there was no, you
15 know, continued operations, you know, of that FB
16 Consulting.

17 Q Okay. Okay. I have one more follow-up
18 question from your Wells Fargo bank statements, and
19 that is there were some payments to a woman named Anna
20 Ruiz. Is that name familiar?

21 A No. Are these -- is this like a Zelle?

22 Q I can go back and find it for you. It was a

1 name out of -- yeah, a Zelle. Oh okay. Landscaping is
2 in the memo. Does that sound right?

3 A I'm sorry, what name was in the memo?

4 Q So the name is Anna Ruiz, and the term
5 landscaping is in the memo. Did they do lawn work for
6 you guys?

7 A I can't recall. I guess I would look -- think
8 about -- refer to the memo. And this is in the Wells
9 Fargo account, right?

10 Q Yes.

11 A It's hard to even recall, to be honest, with
12 these names because half the time when you meet people,
13 you don't know them sometimes even by the name that's
14 on their bank account. So I don't know.

15 Q (Audio disruption.)

16 A Sorry.

17 Q Okay.

18 A It requires their official, legal name, so I
19 don't know.

20 MS. EUSTIS: Okay. All right. I want to move
21 on to questions about Maxed and Matched, but it feels
22 like now is a good time for a break. Do you all want

1 to take a quick break, or a lunch break, or, you know
2 -- 10 minutes, Mr. Brandt, is what you're holding up?
3 Does that work?

4 THE WITNESS: It does, thank you.

5 MS. EUSTIS: Okay, so let's --

6 MR. BRANDT: That would be great.

7 MS. EUSTIS: Perfect. A 10-minute break then.

8 Or why don't we just say come back at noon, is that
9 good?

10 THE WITNESS: Okay.

11 MR. BRANDT: Okay.

12 MS. EUSTIS: Perfect, thank you.

13 (Recess at 11:43 until 12:01 p.m.)

14 BY MS. EUSTIS:

15 Q Ms. Francois Bodine, I'll remind you that
16 you're still under oath, okay?

17 A Yes. And you asked me to mention if anyone
18 else was in the room. My son is sleeping on a cot. He
19 also has a fever like his mom.

20 Q Oh, no. I --

21 A Yeah. He's sleeping on the side, but there's
22 no other person present.

1 Q Okay, thank you. And I hope he feels better.
2 We're fighting colds in our house, too, so -- the time
3 of year.

4 Q Did you have any conversations with anyone
5 about your testimony during the break?

6 A No.

7 Q Did you speak with anyone during the break?

8 A Just my five-year-old.

9 Q Okay. Thank you. So I wanted to move forward
10 and talk about Maxed and Matched. Do you recall when
11 this business was formed?

12 A I -- you probably know the answer. I'm going
13 to refer back to the incorporating documents to just be
14 sure. You know, there may be a couple of months before
15 it was officially incorporated. There were, you know,
16 things happening in the business, but it -- we were
17 just trying to see how it was going to go before
18 officially incorporating.

19 Q Okay. So I'm going to -- I'll share my screen
20 and show you the incorporation. It's a letter from
21 Inc. Now to you and it indicates that the above-
22 captioned corporation, Matched and Maxed (sic), Inc.,

1 was filed and formed in the State of Delaware on
2 October 5, 2018. Does that sound correct?

3 A It does, yes.

4 Q Okay. This business is still currently
5 operating, correct?

6 A Yeah.

7 Q Now, you indicated that you were a partner.
8 Do you hold any other title with Maxed and Matched?
9 Are you an officer, the president --

10 A No. When we first started, I had a bigger
11 role. And since kind of all of this stuff and the
12 pandemic, my ability to generate income outside of
13 Maxed to contribute in the ways that I need to, to
14 maintain my, you know, my, my shares or convertible
15 note, you know, stuff hasn't been there. So I've kind
16 of been diminished in terms of my roles.

17 Q Okay. So who is in charge of the day-to-day
18 operations of Maxed and Matched?

19 A Russ is someone who's in charge, and then also
20 Ronald, who is someone who is a investor, as well, does
21 a lot of day-to-day things.

22 Q So Russ is your husband; is that correct?

1 A (Inaudible.)

2 Q Yes?

3 A Yes.

4 Q Okay. And then Ronald; is that Ronald Bodine?

5 A Yes.

6 Q Is he any relation to you and your husband?

7 A He's my husband's brother.

8 Q Husband's brother, okay.

9 A And one of the first investors in the family
10 and friends round of Maxed.

11 Q So I want to -- okay, so taking a step back.
12 So how many investors, I guess, currently are there?

13 A There are eight.

14 Q Can you name them?

15 A So there's Jenner Torrence. There are the,
16 the Whites, who are, you know, husband and wife. Scott
17 Miller, you know, myself and, and Russ as individuals.
18 And then a -- someone named Eric Herr. There's someone
19 by the name of Shirley. I'm trying to think of her
20 last name. And then Carol Bodine, who's my mother-in-
21 law.

22 Q And Carol Bodine. Okay. And so were these --

1 my understanding was that the initial investors were
2 yourself, your husband and Jenner Torrence. Is that
3 correct?

4 A We -- no. Jenner came on a little bit later,
5 after a -- after the bulk of the family and friends'
6 round was complete.

7 Q Okay. So I guess I'm just trying to get a
8 sense of what was first. So was family and friends
9 first? Were you and husband first, and then family and
10 friends and then Jenner Torrence? Or how did -- if you
11 could explain to me how that worked.

12 A Of course. So myself and my husband first.
13 Family and friends did a convertible note, okay, Jenner
14 Torrence did stock. And that's why you would probably
15 see the three of our names listed over other people's
16 names being listed.

17 Q Okay. So the three of you did stock. The
18 family and friends did convertible notes. I'll note
19 for the record, I did not receive any of those
20 convertible notes. The only convertible notes that I
21 received from you were with respect to Jenner Torrence,
22 and they were from August of 2020.

1 So if there are convertible notes with the
2 family and friends, I would like to see those, just to
3 get a sense of when they entered into and get the full
4 names of everybody.

5 A Okay.

6 Q So those were convertible notes. Were they
7 entered into around the time that the entity was formed
8 in October of 2018?

9 A I don't recall specifically. I know that I
10 can get you those documents quickly. I don't -- it'll
11 take me a second to get my hands on the fully executed.
12 But the original documents that are electronically
13 stored, I can get you that pretty quickly. I'd have to
14 look at the dates because, you know, we open around of
15 investment, and then it just like, stays open until we
16 end up closing it. And -- and it's fully funded. So I
17 don't know when it began, and it officially closed to
18 be honest.

19 Q Okay. So the friends and family -- well I
20 guess, do you know collectively, how much was invested
21 by friends and family?

22 A (Pause) I don't know exactly. I would assume

1 somewhere around 70k. I would assume. I'd have to
2 look.

3 Q Okay. Were those one time -- was that, you
4 know, one time investment at the inception or are they
5 continuing and on-going, do you know?

6 A Oh, by the way, I, I forgot a name. There's a
7 -- also a name of an investor. Her name is Pam --
8 Pamela Braun. Pamela Braun. Then she neither a
9 convertible note holder, nor a shareholder, and that's
10 why I sometimes forget about her. She is someone who
11 will receive, on the backend of -- like, once the app
12 goes live, though after we reach a certain number of
13 monthly active users, she's then entitled to receive
14 payments at that point as to recoup her investment. So
15 that's why I don't think of her. And I'll get you that
16 as well.

17 Q There's an agreement --

18 A Yes.

19 Q -- with her as well? Okay. And so you don't
20 recall whether or not that -- I guess I don't -- I
21 don't remember your answer with regard to whether or
22 not the investments of these family and friend

1 investors were at the beginning, in October 2018 or
2 around that timeframe, if it was a one-time investment
3 or if it was money that was paid by them over time.

4 A So the main family and friends, it was a one-
5 time investment. As to the date, I can't remember what
6 each kind of paid. So that was that. And Jenner
7 Torrence, for example, paid a certain -- you know, said
8 that he was going to come in for a certain amount. And
9 it took time to sort of liquidate that money. So then
10 he would pay, you know, portions of it at a time. So
11 that was that case.

12 And I believe Pamela Braun paid two or -- two
13 to four payments. And her -- in the -- you know, the,
14 the document that I'll send you does have the full
15 amount of, you know, what the end result of those
16 payments was.

17 Q Okay. So you indicated that Ross, your
18 husband, and his brother, Ronald, are probably those --
19 you named them as people who are in charge of the day-
20 to-day operations of Maxed and Matched. And that's as
21 of today. I mean, I -- were you ever heavily involved
22 in Maxed and Matched, the day-to-day operations?

1 A Well I mean, I still do a great deal of the
2 day-to-day operations. What I was trying to speak to
3 was that sort of my, my investments -- what, what I own
4 of things now is smaller than it was. That's what I
5 was trying to say. But I am involved in the day to
6 day.

7 Q Okay.

8 A Sorry.

9 Q That's okay. Thank you for clarifying. And
10 so is there anyone -- I know you had indicated that
11 there's no office and that, you know, everyone's
12 remote. Who else is involved with Maxed and Matched?

13 A Who else is involved. There are VAs, virtual
14 assistants, that live in, you know, different areas,
15 like around the world. And the other thing that I
16 probably -- I'm glad you asked me these questions,
17 because I'm remembering other things. And so some of
18 also what you'll see is payments that go from my --
19 from my -- from, from Maxed and Matched to Wells Fargo
20 are payments -- are monies that go to the employees who
21 live other places, okay, when we have to pay those VAs.

22 And the reason that it's not with -- done

1 under Maxed and Matched is because for some reason the
2 business Zelle -- I'm sorry, the business -- yeah, the
3 business, Zelle, will not work with those other places.

4 And so that money, as you'll see, there's like
5 a transfer that will happen from -- once it gets in
6 Wells Fargo to Jenner Torrence. And so he's someone
7 who also helped with things -- some things in terms of
8 managing the VAs, and he will pay them as well.
9 Hopefully that wasn't too much. But I just remembered
10 that.

11 Q So just so I'm clear. So my -- I want to
12 confirm my understanding of what you just said. So
13 other monies from the Bank of America accounts of Maxed
14 and Matched would go into your personal Wells Fargo
15 account to pay virtual assistants of Maxed and Matched.
16 They could be paid either directly from your Wells
17 Fargo account, or you would transfer money to Jenner
18 Torrence who would then make the payments to those
19 virtual assistants.

20 A Right.

21 Q Okay.

22 A And it -- and it wouldn't happen inside Maxed

1 and Matched, because the number of Zelles, we probably
2 have exceeded it. I mean, as recent as -- as recent as
3 the last 24 hours, for instance, there was a payment
4 from -- from Maxed and Matched that went to Wells Fargo
5 for several -- you know, I mean, at the end it'll be
6 for about, you know, 5 to \$900 that went there. And
7 that was to pay our web developer who happens to be
8 someone else who lives another country, who the Maxed
9 and Matched Zelle does not play nice with. So we had
10 to move it. So that's part of some of the transfers.

11 Q Okay. So are there contracts with these
12 virtual assistants?

13 A Um --

14 Q Employment contracts or any contracts that
15 were, you know, an email confirmation that sets forth
16 terms and conditions of what they're going to be doing
17 for Maxed and Matched and what the compensation they
18 are asking for?

19 A Yes, ma'am.

20 Q Okay. I'd like to see copies of those as
21 well.

22 A Ma'am, may I -- am I able to take a note or do

1 you -- you'll just tell me at the end?

2 Q I can come back and tell you at the end.

3 That's fine. You don't -- okay.

4 (Pause) Okay. Lost my train of thought. I'm
5 sorry. So the virtual assistants, and then again, the
6 web developers since you just mentioned it. Is there
7 an agreement between the web developers and Maxed and
8 Matched for services to be provided?

9 A Yes, ma'am.

10 Q Is there one web developer or are there
11 multiple web developers?

12 A There are multiple, depending on -- I mean,
13 there have been multiple over the last, you know,
14 couple of years.

15 Q Okay. So I'd like to see copies of those
16 agreements as well, you know, setting forth -- what I'm
17 looking for is setting forth the terms of the
18 agreement, what they're going to be doing for you, what
19 compensation they're asking for.

20 You know, and I will say it was not at all
21 clear to me. I think as, you know, we're discussing
22 this today, what monies were going to who and for what.

1 I mean, it's not easy to see. You know, you see just
2 transfers going back and forth between accounts with no
3 indication as to what those transfers are for.

4 So you know, there's nothing from Maxed and
5 Matched that said it is paying a virtual assistant, or
6 virtual assistant company, right? So -- okay.

7 All right. Moving forward. Is there anyone
8 else that does -- you know, that is associated with
9 Maxed and Matched that does day-to-day operations? So
10 it's you, Russ -- I guess we'll go from there. What
11 does Russ do for Maxed and Matched?

12 A He helps with the development. So he'll help
13 work with the -- the web developers and analog digital
14 to get the statistics and, and all those things
15 correct, you know, for the technology.

16 Q And Ronald?

17 A And Ronald is right now helping run the -- as
18 I said in the beginning, that we're -- that the
19 investors have asked us to do lead generation work so
20 that we can try to fill the app and to sort of test
21 some theories that we don't need: paid ads, et cetera.

22 Anyway, Ronald running that portion of that --

1 of, of things, and is also keeping track of any, like
2 monies made from the lead generation portion of things.

3 Q Okay. What about yourself?

4 A And so I am helping with the lead generation.
5 Also doing very high overview with the -- with the
6 technology, the development company, in terms of what
7 components should be in the application. And then I'll
8 also kind of oversee in looking at, like the websites,
9 that they're -- that, that are being made. Also, you
10 know, what the assistants are doing, you know, et
11 cetera. So kind of a bit of everything.

12 Q Okay. And then Jenner Torrence. I know I've
13 seen his name a lot. What does he do?

14 A So he is not with us any longer, officially,
15 because he'll be going on to his, you know, other job,
16 but -- as of like the last couple of weeks. But he --
17 his job was to handle sort of internal technology, like
18 us keeping track of all of the leads that we're
19 getting. And also some web development -- well a lot
20 of web development things as well.

21 Q So it sounds like of this is web development
22 and development and app development.

1 A Yep.

2 Q Okay. Anyone else that's involved that we
3 haven't gone over?

4 A No, ma'am.

5 Q Okay. Are any of them paid, compensated for
6 their services at this point that's not a repayment of
7 a note or repayment of any, you know, credit card? Is
8 there any, you know, compensation coming into any of
9 them for what they're doing?

10 A Yes, ma'am. So Ronald will make a percentage
11 off of, you know, leads that, you know, are generated.
12 So there's that. Then obviously the virtual assistants
13 are paid directly. The web developers are paid
14 directly. You know, Russ is not paid directly right
15 now, because it's just all the money that's going back
16 to the credit cards. And so there's not much left in
17 the startup.

18 After that, Jenner also had been doing a lot
19 of, sort of timing donation, as an investor who's
20 wanting to see it really pick up off the ground. So
21 not in an official capacity, but he's been repaid quite
22 a bit as you'll also see from the transfers that

1 happened from Maxed to Wells Fargo. And then something
2 to him where maybe he paid for a -- you know, something
3 for the business that he needed a software or something
4 to be able to do that.

5 I didn't realize that -- so when I originally
6 filed for bankruptcy and I had to deliver my whole
7 like, bucket of papers to my attorney. I did list out
8 on, you know, on every single one of those months of
9 all the transfers, anything over \$500, you know, what
10 the transfer was for.

11 Not wanting to put my attorney on the spot,
12 but if that documents -- if those documents could be
13 found, and you've had a chance to look at them, I think
14 it would be super helpful because it took me -- man, it
15 took me a good 72-hours to go through each one of those
16 lines and say, over \$500, "Why is this Zelle here and
17 why did the money move and where did it go?" I did
18 that in detail. I don't know if that --

19 Q I do think Mr. Brandt provided them to me.
20 You know, you provided me the bank statements, too, so
21 I'm going off of what you provided to me, and I didn't
22 really want to go into, you know, a document that you

1 provided to your attorney. I mean, he did provide it
2 to me, but if you're telling me that describes any
3 payment over \$500, it only covers a certain period of
4 time. So it's not going to go back through everything.

5 So I figured if we just talked today through
6 this, you know, we can at least -- I'd like to hear it
7 from you about that. But I appreciate that, and I'll
8 take a look at it. He did provide that to me.

9 Okay. Was there any delineations, I guess, as
10 far as you're aware, from the Bank of America account
11 of Maxed and Matched, when these payments were made but
12 -- just say to Jenner Torrence -- whether or not it was
13 on account of, you know, compensation for what he's
14 been doing, whether it was on account of the
15 convertible note, whether it was on account of, you
16 know, to make payments to virtual assistants.

17 I didn't see any of those delineations in the
18 statements. I was just wondering if that was something
19 that you would have put in when making those transfers
20 for your own personal recollection.

21 A Well yes, ma'am. But the thing that we've
22 noticed is when you make the Zelle transfer, there's a

1 memo line where you can put something. And we're
2 finding that even once the transfer is made, it doesn't
3 tell us on the statement -- like that memo line doesn't
4 show up, so it essentially doesn't do anything.

5 Q Okay.

6 A And is not seen internally, either.

7 Q Okay.

8 A So I don't know what it's for.

9 Q It's not very helpful then is what it sounds
10 like.

11 A No.

12 Q Okay. So you do -- I guess -- and that's the
13 question. I mean, you know, when you make these -- are
14 you the one initiating these wire transfers out of the
15 Bank of America Maxed and Matched account?

16 A The Zelle transfers, yes, ma'am.

17 Q So do you ever put in -- in the memo, do you
18 put notes in the memo on account of what the transfer
19 is for?

20 A Yes, ma'am. I do.

21 Q Okay. So the business doesn't have a separate
22 office; is that correct?

1 A Yes, ma'am.

2 Q Yes, it does, or no it -- it's correct it
3 doesn't.

4 A You're right. No, ma'am, it does not have a
5 separate --

6 Q Okay. Does the business have any assets?

7 A No, ma'am. Not unless we're counting the, you
8 know, the -- the intellectual property and the --
9 whatever the technology to be an asset. Otherwise, no,
10 ma'am.

11 Q Okay. So the -- so I mean, you would consider
12 the intellectual property, the idea of Maxed and
13 Matched, you know, and the technology behind it to be
14 an asset of Maxed and Matched, right?

15 A Sure. Yes, ma'am.

16 Q Do you have any sort of value that you would
17 attribute to that IP or technology at this point?

18 A No, ma'am. Because at this phase it's even
19 hard from, you know, an investor standpoint to be able
20 to evaluate it. We'll really be evaluated at the point
21 at which we onboard the first set of paid users. And
22 we're, right now, at the V-1 stage where we're about to

1 be doing a beta testing. So we still have, you know, a
2 whole other stage to get to before we can even talk
3 about what it's worth.

4 Q Okay.

5 A It could be at this point worth less than what
6 the investors gave. Who knows, it just depends.
7 Hopefully not.

8 Q So you said that -- so that's the idea behind
9 it, it would be, you know, a paid monthly membership,
10 yearly membership type thing?

11 A Yes, ma'am, it'd be a monthly subscription,
12 and of course, they'll have the option to pay in full
13 for the year at a discount.

14 Q Okay. So are you working on, you know,
15 content for the app as well or is just in the
16 development stage?

17 A So we worked on a lot of content for the app.
18 And the content -- a good bit of it has been put into,
19 so far, the Version 1 of the app. So we did -- as I
20 said before, there's like a fitness component. So we
21 had to go tape and get, you know, two days' worth of a
22 fitness trainer providing all this video and pictures.

1 And then we've done -- you know, we're working with a
2 stylist who's doing the style portion and on and on.
3 So yes, ma'am.

4 Q So are there agreements with those individuals
5 to provide services to Maxed and Matched and are --
6 were they paid?

7 A No, ma'am. They, they weren't paid. We've
8 been able to use sort of our, our connections and my
9 time matchmaking to have, you know, met some really
10 awesome people who have done it. And, and the hope is
11 that, you know, on the backend, they'll get some
12 notoriety and exposure from having done this.

13 Q So that's kind of the concept for everything
14 that -- that's part of the content right now for the
15 app, is you didn't really have to -- you didn't have
16 any overhead for those expenses?

17 A Well there was not a payment made, per se, to
18 the people for, you know, doing the exercises. But you
19 know, did -- we had to buy them lunch. We had to get
20 our hotel stay, we had to do the travel. So then there
21 are expenses, but not in a -- you know, necessarily
22 paid directly to a person.

1 Q Okay. So you did provide tax returns for 2019
2 and 2020. There has been no income so far for the
3 company; is that correct?

4 A Well no, ma'am, not in -- not in the years
5 that you stated. We just started doing the lead
6 generation portion. Not in the years that you
7 requested, but we just started doing the lead
8 generation portion. So things are finally starting
9 to --

10 Q But for 2019 and 2020, which are the years
11 that your tax returns were filed for Maxed and Matched,
12 there was no income.

13 A Correct. Yes, ma'am.

14 Q Okay. So Maxed and Matched has the bank
15 account at Bank of America, which has a checking and
16 savings account, correct?

17 A Yes, ma'am.

18 Q You indicated in your schedules that you have
19 control over those accounts; is that correct?

20 A Yes, ma'am, I'm a person who has.

21 Q Who else has access to those accounts?

22 A Russ has access, but I believe it's maybe more

1 limited. We really did try to make sure that everybody
2 kind of stayed in their roles with their tasks, because
3 there's so much to oversee. And so him doing the
4 technology didn't necessarily make sense that he was --
5 be doing those tasks.

6 But we did have, you know, for instance,
7 Ronald handling the lead generation stuff. Him doing
8 that so we could have checks and balances. So when
9 investors ask, you know, we could all be, you know, as
10 checked and balanced, I guess.

11 Q So then it would just be you and your husband
12 that would have access to the accounts?

13 A Yes, ma'am.

14 Q Okay. So are there any debit cards or bank
15 cards associated with that account?

16 A Yes, ma'am.

17 Q Does your husband have one or is that -- or do
18 you have one, or is --

19 A Well both, ma'am.

20 Q Okay. Is there any -- either one of you that
21 primarily uses it more than the other?

22 A No, ma'am, just as we need -- as we see, you

1 know, expenses come up and they need to be taken care
2 of, whoever has access and, and needs it.

3 Q But no one else other than you and your
4 husband.

5 A No, ma'am.

6 Q Okay. Does it have any other accounts:
7 PayPal, Venmo, CashApp?

8 A No, ma'am.

9 Q Do you ever provide, you know, summaries to
10 the investors of what's going on, and you know,
11 happenings and status of development?

12 A We provide summaries, you know, to the
13 investors with emails, et cetera, updating them.

14 Q Did Matched and Maxed have any credit cards?
15 I think you mentioned a Bank of America credit card
16 that was tied into the bank accounts. Did it have any
17 others?

18 A Two others that are the Chase cards.

19 Q So those would be the only three?

20 A Those would be. And as I've been thinking,
21 since we've talking this morning, I believe that one of
22 the cards after all the payments from Maxed to Wells

1 Fargo has actually been paid off. So one of the Chase
2 payments is paid off. They -- we started with three.
3 So now there's one that still has a balance that has to
4 be paid. And then also the Bank of America.

5 Q Okay. Did Maxed and Matched take out a loan
6 with, you know, a bank or any other entity or was it
7 just investors?

8 A It was just investors. Because it was a
9 startup there was no one that would do it without being
10 able to see something tangible.

11 Q Okay.

12 A In a product like that.

13 Q The bank accounts for Bank of America that you
14 produced; you did produce what I requested: statements
15 from January 2020 to October of 2021. So thank you.
16 Are those the only bank accounts that Maxed and Matched
17 has?

18 A Yes, ma'am.

19 Q So there's never been any other bank accounts
20 that Maxed and Matched would have used?

21 A No, ma'am.

22 Q Now on your schedules you listed the value of

1 the bank accounts at Matched and Matched (sic) as
2 unknown. Was there a reason for that when you had
3 access to the bank account statements yourself, why you
4 would have listed that value at unknown?

5 A Because it -- because it fluctuates so heavily
6 as to what the ongoing value is. Because there's not
7 enough -- because there are not active monthly
8 subscribers yet, it's hard to say from month to month
9 or day to day what's the value, especially when we have
10 so many outgoing expenses that happen rapidly. So I
11 didn't know how to say that numeric speaking, you know,

12 Q Okay. So I went over the bank accounts. Are
13 there any other books and records, you know, like what
14 we went over with FB Consultant, are there any other
15 books and records that you or your husband, or Ronald,
16 or you know, Jenner had maintained on behalf of Maxed
17 and Matched?

18 A No, ma'am. What we do is we just keep a log
19 of the -- and not -- I wouldn't say log. We just keep
20 track of, okay, well what are the outgoing expenses for
21 let's say analog, digital, those wires and things, you
22 know, what are the monthly expenses, et cetera. And we

1 use the bank account as the guide.

2 Q But there is a ledger that says what the, you
3 know, ongoing expenses or the debt of Maxed and
4 Matched, what that is?

5 A So I believe in the document that you have --
6 the document that you have that's -- talks about the
7 shares. And it lists myself, Russ, and Jenner. And
8 right, I believe in the first or second paragraph, it
9 speaks to the debt that is owed to people, you know,
10 that were the three of us responsible for. But in
11 terms of on-going monthly expenses, no, ma'am, we don't
12 have a ledger. We refer to the bank account, you know,
13 as similar to the FB.

14 Q I'll share my screen, just because I want to
15 make sure I'm on the same page with you. So this is a
16 copy of the stockholders' agreement addendum. So was
17 it the original stockholders' agreement that you were
18 talking about or was it this second one?

19 A I think it's this one. If we scroll down
20 after the background underneath. Let's see.

21 Q So I guess I'm going to stop here though and
22 just say yourself, Russell, and Jenner. As of now,

1 those are the only owners of Maxed and Matched; is that
2 correct? And those are correct percentages or shares
3 that --

4 A Those are the correct -- those are the correct
5 shares. Until the investors' convertible notes mature
6 and/or we decide to buy them out. So it would be
7 further down. Okay. There we are.

8 (Pause.)

9 Q Okay. So the convertible notes. I mean, are
10 these -- is the convertible note just to Jenner
11 Torrence or is there --

12 A So Jenner Torrence's convertible note
13 converted to stock, right? So when he was unable to be
14 -- be paid back by the maturity date, that's why he's
15 listed as a stockholder. The convertible notes that we
16 speak of here are those people whose names we listed,
17 you know, the White family, Eric Herr, those sort of
18 things. Those are the people who have the convertible
19 note --

20 Q That's referenced in Paragraph D.

21 A Yes, ma'am.

22 Q Okay. So this \$75,000 two-year convertible

1 note, that's in total what the individuals that you
2 listed as family and friend investors, they
3 collectively are owed 75,000?

4 A Plus the percentages.

5 Q Plus --

6 A Plus the percentages. Yes, ma'am.

7 Q All right. I'm on board. Okay.

8 A Okay. And then he --- where it says,
9 "Business Loan," then that would be Pamela Braun, who
10 we talked about that's paid, you know, after we get a
11 certain number of onboarded users, monthly users. And
12 -- yeah, the 175.

13 Q So that's Pamela Braun.

14 A Yes, ma'am.

15 Q Okay.

16 A And then she gets paid monthly installments of
17 5 percent of the revenue after development completion.

18 Q So on November 1st though, I mean, it matured
19 on November 1. So did -- I mean, did they convert the
20 family and friend investors? Are they now
21 stockholders?

22 A So no, not all of them. So far everyone

1 decided to extend their convertible note. We were
2 still waiting to hear back from a few people. And I
3 guess around the holiday time, they're still making
4 their decision. And they have until, you know, the
5 first of the year to decide what they want to do. If
6 they want to get their money back or if they want to
7 convert it to a share.

8 Q Okay. Thank you, that was helpful.

9 A Yes, ma'am.

10 Q So you did indicate that Jenner Torrence was
11 out within the last couple of weeks. He still remains
12 a stockholder though, correct?

13 A He does. Yes.

14 Q Okay.

15 A Out of the day-to-day operations.

16 Q All right. Now I want to look at the bank
17 account statements from Matched and Maxed. Okay. So
18 Rodney Bodine. He, you said, is your husband's
19 brother.

20 A Ronald.

21 Q Ronald. I'm sorry. I actually know a Rodney
22 Bodine from growing up, so that's probably where that

1 came from. My apologies. Okay. So Ronald is your
2 husband's brother. And you said he was part of the
3 initial friends and family investors; that's correct?

4 A Yes, ma'am.

5 Q Okay. So I went through the bank statements,
6 and from January of 2020, I think he first deposited
7 money or transferred money into the Maxed and Matched
8 account in September of 2020 -- September 15th of 2020.
9 Since that time, he has paid in \$232,561 into the Maxed
10 and Matched accounts.

11 A Mm-hmm.

12 Q And I want to know what that was on account
13 of.

14 A Mm-hmm. So that's on account of the lead
15 generation portion of things that he is running. And
16 so he is, you know, responsible for that; responsible
17 for processing, you know, those things. And after he
18 does his portion and things are paid out, balances are
19 set to Maxed and Matched; that's what we, we, you know,
20 owe on the balances.

21 Q So I didn't follow that. So let's say, for
22 example, in the month of February of 2021, he deposited

1 \$28,236.75. Is that his own personal money that he's
2 putting into the account?

3 A That is his -- yeah, so that's money that's
4 generated from our -- the lead generation. The lead
5 generation portion --

6 Q Can you explain that to me then? Because I
7 think there might be a disconnect. So explain to me
8 what that is.

9 A Okay. So in order for us to get further
10 investment from outside investors, and because we have
11 not yet started the beta round and it's been slowed
12 down because of the pandemic, they wanted us to
13 organically generate customers. And so we started a
14 Facebook group with our ideal client avatar, you know,
15 the ideal client there -- actually we started two
16 different types of Facebook groups and started a lead
17 generation, you know, portion of the business.

18 So clients, as they, you know, decide to
19 onboard, or do any sort of portion of services, et
20 cetera, they, you know, make a payment, what have you,
21 into, to the segment of the company that Ronald's
22 running. So sort of for his services. And Ronald is

1 able to -- to -- he maintains a percentage of those
2 funds.

3 And then the remainder is for Maxed and
4 Matched, and then we have to work with the client, and
5 you know, get the remainder of payment. I hope that's
6 clear. Is that --

7 Q That makes more sense, yes. But I do have
8 more questions. So is he running -- I understand he's
9 in charge of this. So my understanding would be that
10 -- is there an agreement between Maxed and Matched and
11 Ronald for him to provide these services -- these
12 specific services or entitle him to any of these
13 monies?

14 A No. But he -- it's his own business that this
15 is run under. It's not Maxed and Matched. Maxed and
16 Matched just services the clients. So we just service
17 the clients. He gets the clients and does, you know,
18 like the initial legwork. And he helps Maxed and
19 Matched because we get to say -- see investors. We're
20 actually able to get these leads into, you know, you
21 know, our -- Maxed and Matched without having to do
22 paid advertising.

1 Q So what is the name of his business?

2 A It's Ronald Bodine Consulting.

3 Q Does it do anything -- does Ronald Bodine
4 Consulting do anything else besides this lead
5 generation for Maxed and Matched?

6 A No. But it's expanding -- we're expanding to
7 do -- he's, he's going to be expanding to do like, more
8 lead generation and, and bringing us more business.
9 But no, that's all he does.

10 Q Okay. So you just said, "we." Do you have
11 any interest in that business or no?

12 A No, I don't. When I say we, I mean the
13 customers that are brought over to Maxed and Matched
14 are Maxed and Matched's, and I say we because we
15 service them.

16 Q Okay. So what percentage is the amount that's
17 coming into Maxed and Matched on a basis? So I -- I'm
18 trying to get a sense of what the total amount of money
19 that Ronald Bodine Consulting is generating and how
20 much was the percentage that it keeps and what's the
21 percentage that goes to Maxed and Matched?

22 A Right. So I believe it's something about

1 like, 5 percent that Ronald keeps because we are the
2 ones who service the client. He just finds them. So
3 that's technically the easier part. And so we're
4 responsible for everything else. So then I'd say 95
5 percent is what we see.

6 Q So you don't consider this income generated by
7 Maxed and Matched?

8 A I don't consider it income -- well what do you
9 -- I guess let me ask a clarifying question. What --
10 so there -- we -- I'm sorry. Let me just ask. Can you
11 please -- could you please ask that a different way? I
12 just want to make sure I'm answering correctly.

13 Q Sure. So you have -- it is money coming in
14 from Ronald Bodine Consulting for providing services,
15 you know, on behalf of Maxed and Matched.

16 A Mm-hmm.

17 Q In terms of this lead generation, services
18 that it's -- being provided to you. And you have
19 \$232,000 coming in total over, you know, essentially
20 the last year in 2021. I'm just wondering if this is
21 considered as income of -- if this is considered income
22 of Maxed and Matched.

1 A Well we -- so of Maxed and Matched. I would
2 -- I would assume so. I mean, we, we do put it on our
3 tax returns. I mean, we --

4 Q Okay. So and I guess that's the question.
5 You didn't provide 2021, because 2021's not filed. But
6 I guess that's my question. Is this going to be
7 considered -- you know, is this going to be disclosed
8 as income, you know, going forward on your 2021 -- 2021
9 return?

10 A For -- yeah. As Maxed and Matched income,
11 yeah. Yes, ma'am.

12 Q Okay.

13 A But it's not -- but we are -- but we'll be
14 doing a new form of lead generation as we kind of move
15 forward. And so the income will be less because we'll
16 be taking on the beta users. As we said, we're not
17 going to be paying anything. So we have to show a
18 portion of paid -- what our paid users are versus non-
19 paid and that whole thing. But yes, ma'am.

20 Q Okay. And then, you know, I'm looking at the
21 bank statements, the accounts -- the transfers for
22 Ronald Bodine -- and I can show you them. They don't

1 come from Ronald Bodine Consulting. They appear to
2 just come from an individual named Ronald Bodine.

3 And then in the final month, I think it's
4 October of 2021, it does come from Ronald Bodine
5 Consulting. So I guess that's my question. I mean,
6 has it been coming from him personally? Is his -- or
7 is his entity -- I guess, has it been coming from him
8 personally, is that your understanding, or is it your
9 understanding that it was coming from his entity?

10 A It's coming from his entity. So what happened
11 was we -- well so what happened was we, in trying to
12 make sure all of the documentation and things were
13 correct, we had a larger volume of leads coming in.
14 And when those -- because when we started, we didn't
15 know how it was going to go, right? So he was kind of
16 just running it from a business bank account.

17 And then after we saw how it was going, then
18 he upgraded to a merchant account. And I believe
19 that's why you may see now, the name change from just
20 saying like, his name with the business. Because he
21 was operating it before as a sole proprietor, but then
22 it's become upgraded or whatever. And now he has a

1 merchant account, and I assume that that switch with
2 the merchant account is why it now says Ronald Bodine
3 Consulting. But it was not from him personally. No,
4 ma'am.

5 Q Okay. Do you know, is Ronald Bodine
6 Consulting a -- do you happen to know if it's an actual
7 business that's registered to do business in Virginia?

8 A So it is following all of, of the guidelines.
9 And I can't remember if the -- well I know that as a
10 sole proprietor, what have you, he had to register with
11 the -- or use his social security or whatever.

12 But yes. And I, I don't know what he provided
13 to the bank, but I assume it's whatever they need for
14 him to be operating a business. I, I don't know the
15 particulars because it's not my business.

16 Q Okay, that's fine. I was just wondering if
17 you knew. And so just to confirm, there's no agreement
18 between Maxed and Matched and Ronald Bodine or Ronald
19 Bodine Consulting for it/him to provide these services.

20 A No, ma'am, there's not. And -- no, there's
21 not.

22 Q Okay. And then is there any reason why Maxed

1 and Matched just didn't, you know, take on these lead
2 generation searches on its own and do that on its own
3 and you know --

4 A Because it -- because it's kind of painstaking
5 work, and we didn't know that we would have the
6 bandwidth to do that while we were trying to get
7 development up. And especially after development has
8 taken so much time and has been backlogged. What the
9 investors want to see is a final product.

10 So we've been trying to focus there and then
11 outsource the lead generation. So when we reach the
12 deadline, we can say, "Hey, we've got the app developed
13 and the lead generation." We know we couldn't do both
14 on our own.

15 Q Okay. Did Ronald Bodine do anything? I mean,
16 did he have a job prior to doing this?

17 A Yes. And he still also has his job.

18 Q And what is that?

19 A He does medical insurance stuff, I don't know,
20 for a hospital.

21 Q So did he have any experience previously in
22 lead generation work that you're aware?

1 A No. We -- we were able to sort of train him
2 as to sort of what had been working well. And what he
3 did was when we started up our original Facebook group
4 to just start the lead generation, at the very
5 beginning, he got in to sort of manage that Facebook
6 group and see how things were going. And when we saw
7 that he was capable of doing that, then that's when we
8 said hey, let's give him the rest of this, and we can
9 bow out of it.

10 Q Okay.

11 A And so I guess his experience was kind of his
12 little internship in being the, the manager of the
13 groups we had.

14 Q So are you or your husband involved, you know,
15 since giving him the reins to sort of run with this
16 lead generation, have you and your husband been
17 involved with it at all?

18 A Other than servicing the clients, no. I mean,
19 Ronald does the, the -- the getting of the people.

20 Q Okay. So going through the bank account
21 statements of Maxed and Matched, in March of 2021 --
22 I'm happy to share again so that you can follow along.

1 Okay. So in March of 2021, there was a wire from Jane
2 Rosenberg for Facebook sales training. Do you know
3 what that would be for?

4 A Yep. That's for the -- that's for --

5 Q Trying to find it. I'm sorry. Oh, that's
6 March of 2020; that's why it would not be there.

7 A Yes. But Jane was someone who wanted to learn
8 more about the lead generation. And so we did a
9 training with her to sort of show her what our methods
10 were for using it to generate leads for our business,
11 and you know, so she compensated Maxed and Matched for
12 that time. So it was like the original kind of
13 training that we did for Ron and before he did it on
14 his own.

15 Q So Ron provided those services to her?

16 A No, no, no.

17 Q Oh.

18 A We provided the services to her. I'm saying
19 that the training that we did for her was, you know,
20 likened to the training that we did for Ron before he
21 started doing his own, you know, lead generation.

22 Q Gotcha. And then again in April of 2021, that

1 would be the same --

2 A From Jane?

3 Q -- for her? For Jane?

4 A Yeah. Yes, ma'am.

5 Q Okay. Let me -- size is too big for me to
6 scroll. Hold on. I apologize. On April 15, 2021,
7 there was a deposit for \$19,600 through -- at the
8 counter -- a counter credit of \$19,600. Do you recall,
9 was that you who deposited that amount?

10 A I -- I'm really drawing a blank here. I don't
11 know where that's from.

12 Q And then again on April 21st, there was
13 another one for ninety-eight hundred dollars. (Pause)
14 Do you recall why you would -- why you or anyone would
15 be depositing, you know, \$19,000 into the Maxed and
16 Matched account in April?

17 A I can't recall off the top of my head. No. I
18 wonder if I looked at the documents I originally sent
19 to Mr. Brandt, if I could -- if those spoke to that.

20 Q So all -- and I will clarify, all of the
21 documents that I received from Mr. Brandt were only
22 bank account statements from your Wells Fargo account.

1 I had never seen any of the Maxed and Matched accounts
2 before you provided them to me.

3 A Well there was -- there were notes on all of
4 them. Anything that was over \$500. That's why I'm
5 knowing that I wouldn't have skipped over that. I'm
6 just on the spot now and I'm trying to think. The --
7 yeah, I'm trying to think. One of the plausible things
8 would be is if it was paid somewhere else and it was
9 supposed to be paid to Maxed and Matched that it was
10 withdrawn there and deposited into the account. I'm --
11 I'm trying to think though. I -- as it stands, I'm
12 drawing a blank to be honest.

13 Q Okay. Would it have been anyone other than
14 you or your husband depositing those amounts into the
15 Bank of America account?

16 A Depositing it into the account? No. It would
17 have to be us.

18 Q Okay. Going back to the investors, I know
19 that you said that they were family and friends. Did
20 they come to you or did you, you know, reach out to
21 family and friends to see if they were interested in
22 investing?

1 A Some came to us after hearing about the idea.
2 Some reached out, too. So it's normal in the startup
3 world to have a family and friends' round, because you
4 have to have that before any investor invests in you,
5 because they want to see, well if you -- if your family
6 friends won't invest in you, why should we? And they
7 know you better than we do. So that's a normal
8 startup.

9 Q Okay. So also in looking through the Maxed
10 and Matched Bank of America account statements, there
11 appear to be a lot of personal expenses paid out of
12 these accounts. Did you use the Bank of America
13 account for Maxed and Matched to make personal expenses
14 -- or to pay personal expenses?

15 A Actually, no. And again, I, I would really
16 like to get my hands on those documents that had it all
17 listed. So Maxed and Matched also had a podcast. And
18 so there are a lot of outfits that have to happen for
19 our podcast and our social media.

20 So there are -- and I'm also the face of a lot
21 of those things. So I'm the host for the podcast, so
22 there are personal things that the business has to pay

1 for that, that you know, is important for.

2 We also have a very large following on
3 Instagram, Maxed and Matched does, @maxing_u. And so
4 we have to keep generating things for all of our
5 workout videos, our you know, skits and other things
6 that we do. So --

7 Q Okay. So what is Acellus Academy?

8 A Acellus Academy, that would be some
9 instructional learning. Some like, kid instructional
10 learning.

11 Q Is that a business expense for Maxed and
12 Matched?

13 A There -- is it a business expense for Maxed
14 and Matched? Um --

15 Q Or is that for your children?

16 A That is -- I, I can't remember. I can't
17 remember specifically what that was because we do do a
18 good bit of educational expenses out of the business
19 account. So I'm not sure.

20 Q So you don't know whether that's something
21 that you purchased for educating yourself and Maxed and
22 Matched or for your children?

1 A I -- I can't remember with the name. Because
2 the name is -- often on the bank Statements -- is not
3 always the name. I'm not sure.

4 Q Okay.

5 A But I can look it into and get back to you
6 with the other --

7 Q All right. Leapfrog Academy. Do you know
8 what that is?

9 A Yes.

10 Q Is that an expense of Maxed and Matched for
11 the business?

12 A It is. Yeah, I believe it is. Because when
13 my children travel with us for the business shooting,
14 et cetera, and we have to pay for whatever the, you
15 know, the expenses for them to be sort of, you know,
16 entertained there, during those shoot times, et cetera,
17 that would be something that would fall under that.
18 That's -- I think that's like a monthly subscription.

19 Q Okay. And Magner Law?

20 A Uh --

21 Q You paid them twelve-hundred dollars on
22 November of 2020.

1 A Yes.

2 Q Would that have been in connection with the
3 representation of Maxed and Matched?

4 A It would be -- I, to be honest, I can't
5 remember. As you see, I have had four attorneys in the
6 last however many couple years. I don't know. I can't
7 remember.

8 Q So you don't know if Magner Law represented
9 you -- represented Maxed and Matched or did they
10 represent you individually or FB Consultant in
11 connection with the litigation from one of the three
12 creditors that had sued you prior to filing for
13 bankruptcy?

14 A Let's see. Yeah, give me a moment if you
15 will. (Pause) So I, I don't recall. It may be one of
16 the -- it may be for the Loudon County -- the
17 proceeding with Lani Hay. And so if that's from there,
18 that would sort of take out from the \$5,000 that I get.
19 And so instead of paying a wire fee to myself and then
20 putting it back in, paying, you know, et cetera. And I
21 think maybe due to time sensitivity, it was just set.

22 Q Okay. And then there were a couple of

1 charges, you know, fifteen-hundred dollars at Gucci in
2 Las Vegas.

3 A Mm-hmm.

4 Q So I think there's one -- well this one's
5 April 9th of 2021 for about eleven-hundred dollars, and
6 then again for fifteen-hundred dollars in March of
7 2021. What were those for?

8 A So those are for items and things that we use
9 in our -- in our production in podcasting. So we're a
10 high-end, you know, app service. And so inside of our
11 -- promotional things have to be the types of things
12 that our clients would -- the, the types of things that
13 they would use, because it's not sort of an everyday
14 app for the average dater.

15 Q Okay. So the app's not working though, right?
16 I mean, the app isn't functioning. There are no
17 clients; is that correct?

18 A So there are leads that we have in. There are
19 no paying clients that are onboarded on the app. And
20 so when you ask that question, I want to clarify we
21 have both a podcast that has existed for some time,
22 plus we have a social media following, both of which

1 are needed before we ever onboard.

2 And those followings have been able to get us
3 the -- have been able to get us, you know, the
4 celebrity personal stylists who did all of the content
5 for that. The fitness instructor, et cetera.

6 Q Okay. So -- but as we've been talking up
7 until now, I mean, you've never mentioned the podcast,
8 you know, Maxed and Matched has always, you know, I
9 think your testimony at 341 meeting that Maxed and
10 Matched was an idea; it was an app, it was technology
11 that we've been trying to get off the ground for, you
12 know, a while now. There was never any mention of
13 there being, you know, a podcast, you know, or
14 giveaways, that sort of thing.

15 So, the purchases at Gucci for, you know,
16 twenty-five-hundred dollars, those were items that you
17 purchased to give away as part of a promotion to your
18 Instagram followers; is that accurate?

19 A I didn't say a promotion to my Instagram
20 followers. I did say that these are things that are
21 utilized in our podcast. In the production of our
22 podcast and the production of our Instagram videos, et

1 cetera, that we utilize to, you know, uphold the
2 lifestyle brand that we have at, at Maxed and Matched.

3 I was specifically asked about the app during
4 that testimony. And I did listen to the audio again.
5 But no one asked about all of the things being done. I
6 mean the, the -- the timestamps on the Instagram and
7 the podcast kind of speak for themselves as to how long
8 they've existed.

9 Q Right. You know, and even I've asked you what
10 -- you know, what's Maxed and Matched? And you said
11 it's an app, it's technology. At no time, you know,
12 did you say that Maxed and Matched -- I also run a
13 podcast on behalf of Maxed and Matched. You know, do
14 you have any -- do you receive any advertising money on
15 account of your podcast? Do you have any advertisers?

16 A No, we don't, because we don't want to
17 compromise the integrity of the production. So I don't
18 think that me not --

19 Q Ma'am, I'm going to ask questions, okay? And
20 then you can respond to them. So do you have any
21 sponsors?

22 A No. So in response to what you said, I --

1 Q Ms. Francois Bodine, again, I'm going to ask
2 you questions, and then you can answer them, okay? You
3 answered my prior question as to whether or not there
4 was any advertising associated with Maxed and Matched.

5 A Okay.

6 Q And my next question are does Maxed and
7 Matched have any sponsors for its podcast?

8 A We have guests.

9 Q Do you have sponsors? Do you have any
10 sponsors for the podcast?

11 A You mean -- well can you articulate --
12 explain, what do you mean by that? Sponsors --

13 Q So when you have a sponsor, a sponsor pays
14 Maxed and Matched, or whoever the podcaster is, and
15 they run advertisements or sponsorship, you know, spots
16 throughout the podcast. And --

17 A Like advertisements.

18 Q Correct.

19 A Right. I said no to the advertisements. So
20 no to the sponsors.

21 Q So no to sponsors. And you have guests you
22 said?

1 A We do. Yes, ma'am.

2 Q Okay. And do you pay your guests anything to
3 be on your podcast?

4 A No, ma'am, that's not the usual way.

5 Q So they just get compensated based on, you
6 know, the exposure that they get to your followers?

7 A Yes, ma'am. And, and then we get to go on
8 theirs as well and then get exposure to their
9 followers.

10 Q Okay. Are the podcasts -- I mean, whenever
11 I've listened to a podcast I've listened to it. So I
12 listen to the audio, it's never been a visual podcast.
13 Is yours a visual podcast?

14 A It is. It's audio and video.

15 Q Okay. So the items from Gucci; what was it
16 that was purchased there?

17 A They're likely clothing items, et cetera, used
18 in the podcast and in the, you know, Instagram Reels,
19 Facebook videos, et cetera.

20 Q Were those used by you?

21 A Yes, ma'am. Oh, and also, when we have --
22 when we do -- so, so in our podcast and in our video

1 podcast, there'll be images of, you know, people and
2 family or things like that. They'll also be used in
3 those types of ways or -- I can't remember particularly
4 what the things were, but they'll be used as props for,
5 you know, different things. Yes, ma'am.

6 Q Okay. So some other larger purchases:
7 Goldbelly. Do you know what Goldbelly is?

8 A Yes, ma'am.

9 Q What is that?

10 A It is a food -- a place that sends food. So
11 we'll utilize that when we, you know, host for, you
12 know, events or, or something where, you know, we're
13 seeking investors -- looking for investors, maybe
14 invite investors, that type of thing.

15 Q And Doyle and Doyle; do you know what that is?

16 A (Pause) I can't remember off the top of my
17 head.

18 Q I think it's an antique jeweler. That's what
19 I searched when I -- that's what I found when I
20 searched on the internet for it. Does that sound
21 correct?

22 A Yes, ma'am, that sounds more familiar.

1 Q What did you purchase at Doyle and Doyle for
2 Maxed and Matched?

3 A So that would have been one of my payments to
4 myself that had to be, you know, for my -- about 5,000
5 a month's stipend from Maxed and Matched. That was my
6 personal.

7 Q Okay. So how again are you compensated? What
8 is -- what is your -- I understand you put that you get
9 \$5,000 a month based on the income from the business.

10 A Mm-hmm.

11 Q But is there employment agreement or other,
12 you know, agreement between you and Maxed and Matched
13 for your compensation?

14 A No, ma'am. It will just completely depend
15 upon sort of what's generated that month, how things
16 are going. There's months where I don't get anything.
17 And so if there happens to be a surplus, I get to sort
18 of hit that ceiling. And I, I think -- I think that
19 answered it. Yes, ma'am.

20 Q Okay. And so what about Sittercity; do you
21 know what this for?

22 A Mm-hmm. Yes, ma'am. So that would be if we

1 are traveling and the kids are in the production or
2 doing a shoot with us for Maxed and Matched or the
3 podcast or the Instagram, whatever, then we'll have
4 like a sitter who is watching them during that time.

5 Q And so that would be the answer for Care.com,
6 too?

7 A Yes, ma'am.

8 Q Okay. And then purchases that, you know,
9 occur pretty regularly on a monthly basis would be
10 purchases at Target, Walmart, Whole Foods, you know,
11 Giant, grocery stores, that sort of thing.

12 A Mm-hmm.

13 Q What are those purchases for, for Maxed and
14 Matched?

15 A Yes, ma'am. So the Target, Walmart type of
16 stuff will be for the business supplies and expenses
17 because now everything's happening, you know,
18 virtually. So that would be that.

19 And then Whole Foods, various stuff if we're
20 sort of doing like a work-away type of meeting or
21 something, it will be to, you know, you know, for the
22 food or whatever it is for that, you know, for that

1 meeting or time or what have you. Yes, ma'am.

2 Q So I mean, it looks like every day, you know,
3 in various months you, you know, there are expenses for
4 Dunkin' Donuts and various Potbelly, McDonald's, Panda
5 Express, you know, for eating out. I mean, your
6 expensing lunches, dinners, everything -- every month
7 you're spending those amounts on the Maxed and Matched
8 account for yourself?

9 A So as I said, if we're meeting with other
10 people or if it requires travel, and it's a business
11 travel and I've got to go somewhere else to work
12 somewhere or meet someone, anything that's on the, the
13 work time, yes, ma'am.

14 Q Okay. And then Cameron/McEvoy, PLLC; that's
15 another law firm that a payment was made to.

16 A Mm-hmm.

17 Q Was that on account of Maxed and Matched or on
18 account of you, personally?

19 A So that would fall into the same type answer
20 as Magner. So that would become one of my, you know,
21 deductions from my personal expenditures for that
22 month.

1 Q Okay. And then what about -- and I'm going to
2 mispronounce this -- Seniawski Law Firm, S-e-n-i-a-w-s-
3 k-i?

4 A Similar, ma'am.

5 Q Okay. And then Mercedes Benz?

6 A So -- yep. So that was a -- let's see. What
7 -- can you tell me the amount that that --

8 Q That was \$212.

9 A You said \$212?

10 Q Mm-hmm.

11 A Uh-huh. And then what -- did you another?

12 Q No. \$212.

13 A Oh, yes, ma'am. So that would have been for
14 -- oh, yeah. That would have been for -- do you
15 remember the month? I don't know if you --

16 Q June of 2021.

17 A Right. So that was for a work travel that we
18 had upcoming. So that would be for, you know, what we
19 needed to get the vehicle ready to drive it to the work
20 travel, as opposed to expending out for the plane or
21 train or whatever. And during that time, I know there
22 wasn't a lot of that happening with the pandemic, and

1 so that's when that date --

2 Q Okay. And then March of 2021 a charge for
3 Empowered Massage for \$140?

4 A Yes. So the person at Empowered has been a
5 client since -- since way back at the Dulles Automotive
6 days. And we went to talk to her about actually her
7 being a part of the mindfulness portion of -- of the
8 app.

9 Q So did you get a massage there? I'm wondering
10 why they would have charged you \$140.

11 A They're -- they were likely products that she
12 had that we, you know, got so that we could get an hour
13 of her time to talk to her about this.

14 Q Okay. And then who is Bobby George? Does
15 that name sound familiar to you?

16 A It does. It's our production manager for the
17 podcast and the Instagram and Facebook pages for Maxed
18 and Matched.

19 Q So you don't -- do you oversee or control any
20 of the content on the Instagram pages or any other
21 social media for Maxed and Matched?

22 A Ma'am, could you be -- could you elaborate as

1 to what you mean by control?

2 Q So do you, I mean, are you the one that's
3 putting the content out there for people to see or is
4 that your production manager?

5 A So the production manager will put out our
6 podcast, our You Tube videos with the video podcast,
7 and he also will do some of the posting of the
8 Instagram. And then sometimes on certain days that
9 he's not able to, I'll have access to the content
10 folder that he, you know, gives. And then I'll -- I
11 will do some of the posting. But he's kind of largely
12 responsible. Yes, ma'am.

13 Q So you do -- you have posted and produced
14 content on the Maxed and Matched Instagram page. Is
15 that correct?

16 A I've posted the content he's, he's made
17 sometimes. But largely, he's responsible. Yes, ma'am.

18 Q Okay. And then William Crow; is that name
19 familiar?

20 A Yes.

21 Q Who is William Crow?

22 A He is the producer that shot all of the videos

1 for the exercises that the celebrity fitness trainer
2 did for us for -- for Maxed and Match.

3 Q Okay.

4 A And that was around a time where we had to
5 travel to North Carolina -- I don't know if you see any
6 sitter stuff there -- to get all of that done.

7 Q Okay. And then just a few more. Lucia Valle;
8 does that name sound familiar?

9 A No, ma'am, it's not ringing a bell.

10 Q Let me see. What about a vape shop? Would
11 there be -- do you recall any large purchases at a vape
12 shop or why there would be a large purchase at a vape
13 shop, \$100?

14 A So we did a cigar shoot, and had cigars in our
15 -- in the -- in some of the content that we did. So I
16 think that that's what it would be for.

17 Q Okay. Then Raspberry Golf Academy.

18 A Yeah. We were shooting over by the Raspberry
19 Country Club and had to pay the hour fee.

20 Q Would that be for -- are those for your
21 Instagram page and promotional material to try and get
22 clients in or is that something that's being used as

1 part of the app?

2 A So that's promotional things to get clients
3 in. But also -- and that's the stuff that, you know,
4 gets posted. But also that -- those things will be
5 things that will be like, utilized in the app as well,
6 you know, in terms of, you know, when we're talking
7 about like, self-care and things like that. It just is
8 not like as we said, you know, the app is not live.

9 Q Okay. And then there were a number of cash
10 withdrawals throughout the period of statements that
11 you provided. Who would be making those cash
12 withdrawals?

13 A I know I'd be one of the -- one of the people.
14 I'd, I'd have to know all -- and it's hard to recall
15 what they're --

16 Q You don't recall what it would be for?

17 A Well if, again, if -- when I can get access to
18 my -- to those documents, then I can better tell you.

19 Q So you did provide the Maxed and Matched
20 accounts to your attorney --

21 A Yes.

22 Q -- prior to filing?

1 A Yes, ma'am.

2 Q Okay.

3 A And I did line by line, you know, go over the
4 -- you know, each thing that was over 500 so I would, I
5 would know then. I'm just trying to recall all these
6 numbers you're telling me now and try to make sense of
7 it all. But then it was a like a calmer environment,
8 and I would -- I knew.

9 Q Okay.

10 A Like for instance, sometimes Bobby George,
11 who's the production person, would -- we would need his
12 services and we would need them fast. So he would want
13 a cash payment so that when he's there, we can do them.
14 There's things like that. Or for instance, even the
15 guy Bobby -- or Billy Crow, William Crow, same type of
16 thing. And we had to pay for his -- what is it, like
17 his hotel expenses, et cetera. He would just want the
18 cash so he could be reimbursed immediately and pay.
19 Those types of things. But I would know better if I
20 looked. Yes, ma'am.

21 Q Okay. So then other purchases at like,
22 Nordstrom, Bloomingdales, that's -- those were for

1 what, exactly?

2 A Those same type of things that we do with the
3 podcast. So when we're sort of speaking to brands or
4 those types of things, it's also part of our way to
5 build brand relationships so that we can get what you
6 talked about before, which is the sponsorship. Because
7 when they see us constantly using it and our -- and the
8 followers are interested in it, then we can become
9 influencers for them, and they pay.

10 Q So that's the goal then, I guess, is to
11 become, you know, an influencer and get those
12 sponsorships through your Instagram in addition, you
13 know, to the Maxed and Matched app?

14 A Well we're hoping that they will sponsor --
15 that they will -- that yes, that they will sponsor and
16 be tagging Maxed and Matched in their, you know, in
17 their stuff.

18 But also, I, I mentioned it really briefly as
19 part of the app there's this style section. And in
20 that style section, there's going to be an application
21 where people can purchase directly in the app. So
22 like, we'll make a suggestion about a piece of clothing

1 and they can buy it in the app, and then we are
2 compensated, you know, a percentage of that sale to
3 Nordstrom or what have you. And part of that whole
4 thing is, "Well how many people are actually following
5 you guys right now who even like Nordstrom?"

6 And our way is to be able to go back and say,
7 "Well, when we listed you here," you know, "we got this
8 many likes," et cetera. That type of thing.

9 Q Okay. What was the name of the podcast?

10 A The podcast is Maxing_u.

11 Q And that's the same as your Instagram account?

12 A Yes, ma'am.

13 Q Do you use any -- do you also have a personal
14 Instagram account?

15 A I do. I've got a couple Instagram accounts.
16 Mm-hmm.

17 Q Okay. And then the savings account, which is
18 the account ending in 1208. There were deposits from
19 Jenner Torrence into that account; is that from the
20 convertible note?

21 A Yes, ma'am.

22 Q There were also large sums paid to Community

1 Federal Savings. Do you know what those were for?

2 A (Pause) I don't know if that was -- I don't
3 know. I hate to speculate. My original thought is
4 that it could be something that was paid to Ronald when
5 -- for him to get started with the lead generation.
6 But that Community Federal, it's not an account that
7 I've owned or any -- and I know Russ doesn't own an
8 account like that. So I -- I'm trying to think.

9 Q So Analog Republic. Is that the development
10 company that you were using?

11 A Yes, ma'am.

12 Q So they were -- so it was to Analog Republic
13 at Community Federal Savings. Does that sound right?

14 A It does. Yes, ma'am.

15 Q Okay. So I know that there were a lot of
16 transfers to your husband and to Jenner Torrence from
17 the checking account. But there were also transfers
18 out of the savings accounts to them. Do you know why
19 transfers would, you know, be made from one account
20 over the other to them?

21 A Yes, ma'am. So I believe when Jenner would
22 send the payments -- I am pretty certain that it would

1 always end up going in the savings account. And so
2 instead of moving it through the savings to the
3 checking and then transferring to them, if something
4 needed to be paid, it just was paid from whatever
5 account it was in.

6 Q Okay, great. Yeah. I couldn't tell if I was
7 muted still or not. Excuse me. Okay. And then cash
8 withdrawals from the savings account. What would they
9 go and be used for?

10 A So similar to what we were talking about with
11 the cash, that maybe it would pay, you know, Bobby or
12 William Crow or any of those sort of -- those other
13 vendors that we needed to pay for, you know, things for
14 the shoots and the podcast, et cetera. Things like
15 that.

16 Q Okay. Now you provided copies of the
17 convertible note with Jenner Torrence. The borrower on
18 those notes wasn't Maxed and Matched; it was an entity
19 called MM Technologies, LLC. Do you know what MM
20 Technologies, LLC is?

21 A Yes. So MM Technologies is the subsidiary
22 vehicle that the family and friends round convertible

1 note investors have maintained. So they are -- so that
2 they show up on our cap table as one entity instead of
3 eight.

4 So like in the investment world, when an
5 investor pays us this next round of investment, they
6 don't want it to seem like there's nine people who get
7 a vote. They want it to seem like, you know, there's
8 -- those eight people equal one person, so that they
9 are under a -- their own LLC sort of vehicle.

10 And so Jenner is part of that.

11 Q Well you signed the note on behalf of MM
12 Technologies, LLC as a member of MM Technologies, LLC.

13 A Mm-hmm.

14 Q Is that correct?

15 A Yes.

16 Q Okay. And you signed --

17 A I set up the convertible -- I'm sorry.

18 Q And you signed this convertible note on August
19 1, 2020.

20 A Yes, ma'am.

21 Q So you're a member of MM Technologies; is that
22 correct?

1 A Yes, ma'am.

2 Q Okay. When was that entity formed?

3 A I'd have to -- I'd have to check. I don't
4 know off the top.

5 Q Does MM Technologies have any bank accounts?

6 A No, ma'am.

7 Q Who are the owners of MM Technologies?

8 A So the eight people we've talked about. So
9 you know, like myself, Jenner, Carol Bodine, Eric Herr,
10 the White family, those people who we mentioned before.

11 Q So they're all owners of MM Technologies, LLC.
12 So they're all members of that entity.

13 A Yes, ma'am.

14 Q And you signed on their behalf.

15 A Yes, ma'am.

16 Q Okay. Did the money borrowed from MM
17 Technologies that Jenner Torrence paid, did that go
18 into the Maxed and Matched account?

19 A Yes, ma'am. And they were, at times, I
20 believe at least one instance that you already pulled
21 up, where it looks like it went into the Wells Fargo
22 account.

1 Q Okay. Ellen K. Fishbein is listed as the
2 resident agent of that entity; is that correct?

3 A Yes, ma'am.

4 Q Who is that?

5 A That's the attorney that set up the -- the MM
6 Technologies.

7 Q Okay. Why was this entity not disclosed in
8 connection with your bankruptcy case?

9 A Because I forgot that even existed. I didn't
10 even think about it as an existing entity because I
11 think of all of those people who are in -- that own the
12 convertible note, I just kind of think of them
13 individually. I forget that technically, we wanted
14 them to not be all listed on the cap table.

15 Q Okay. Are you familiar with an entity called
16 Funky Zebra?

17 A Yes.

18 Q What is that entity?

19 A It is a -- it was a bus rental company that we
20 had set up for a couple of months. I think it lasted
21 all of three or four months.

22 Q And you had an interest in that company?

1 A Yes. But I think it pre-dates your question
2 -- I mean, the, the timeframe that --

3 Q Well it doesn't. The Statement of Financial
4 Affairs requested, I put four years since the date of
5 filing any entity that you had an interest in. And I
6 believe that one has been active, you know, well into
7 2017, which would fall within that period. So that
8 would have had to have been disclosed. You said it was
9 operating for about three months?

10 A Right. And I don't -- I think I, I would
11 almost argue that it was in 2016. Because I think I
12 looked at the statements. But if it falls outside of
13 the time, happy to provide it, but I'm pretty sure it
14 doesn't.

15 Q Okay. So you did do an inquiry if you looked
16 at Funky Zebra in terms of whether or not you were
17 supposed to disclose that?

18 A I, I believe so. Yes, ma'am.

19 Q Okay. But you didn't do an inquiry into MM
20 Technologies?

21 A I didn't even think that it existed. I had
22 completely forgot about it because we never refer back

1 to it. It's only -- and only because MM Technologies
2 only matters if the people who are the eight
3 convertible note folks become shareholders. Right now,
4 they're not shareholders.

5 So that is only a holding place in the event
6 that they do become shareholders. Right now, they're
7 just convertible note owners. So it's kind of a -- an
8 -- something that has to be exercised.

9 So I -- no, I didn't think of it.

10 Q So Funky Zebra doesn't have any bank accounts?

11 A No, ma'am.

12 Q Okay. Are you familiar with an entity called
13 MaxingU?

14 A Yes, ma'am.

15 Q When was that formed?

16 A I'm not sure. It never was utilized. We were
17 going to form it in the event that the podcast, you
18 know, started producing something. But we never ended
19 up doing anything with it. It only had been filed in
20 the event that we wanted to reserve that name.

21 Q Okay. I'm going to share my screen.

22 A Mm-hmm.

1 Q This is a copy of the Virginia State Corporate
2 Commission account that says MaxingU is active. Active
3 in good standing. Bear with me. Bear with me a moment
4 and let me find -- I pulled up the wrong one. (Pause)
5 Okay. And that lists you at your address as the
6 resident agent and principle office of this entity.

7 A Mm-hmm.

8 Q Is that correct?

9 A Yes, ma'am.

10 Q Okay. And so it says here that it was formed
11 on December 31st of 2020; is that correct?

12 A I, I assume so. It was literally formed and
13 then never touched or thought about again.

14 Q Who were the -- who was set up as the owners
15 of MaxingU?

16 A I believe I, I -- I was.

17 Q The sole owner?

18 A Or -- I don't -- I don't remember. I'm the
19 one who set it up, but I can't remember. We -- I
20 quickly realized I didn't need that. I needed to be
21 thinking about trademarking, not getting that. And it
22 wasn't necessary since we already had Maxed and

1 Matched, Inc.

2 Q Okay. So it doesn't have any rights to the
3 MaxingU podcast?

4 A No, ma'am.

5 Q Or to the MaxingU Instagram page?

6 A No, ma'am.

7 Q Does it have bank accounts?

8 A No, ma'am.

9 Q Why wasn't this disclosed in connection with
10 your bankruptcy case?

11 A Because I thought that it was not active
12 because we didn't do anything with it and decided we
13 didn't need it, and we didn't have a bank account and
14 so everything is with Maxed and Matched.

15 Q But you still have an interest in it, correct?

16 A I, I completely forgot. I'm just being honest
17 here. I mean, it'll sound it sounds, but I'm being
18 honest. I -- it was made and then forgotten about
19 because we never did anything with it. So I guess your
20 question is do I have an interest in it, yes. But I
21 didn't even think that it still really existed.

22 Q Okay. Then, you know, that was at the time

1 that you, you know, you didn't include that when you
2 filed your schedules. And then I sent you the 2004
3 exam request and the order was entered, and I requested
4 that you provide a list of all entities that you have
5 an interest in, and you know, all books and records
6 associated with it. And again, you didn't disclose any
7 of those business entities. And why did you not
8 disclose them at that time?

9 A Because it -- you just presented it to me here
10 and it's the first time that it was ever like, "Oh. I
11 had that." And then completely didn't use it and --
12 because we didn't need to use it.

13 So yeah, it wasn't a -- something I'm not
14 disclosing. I didn't even know that it was still a
15 thing. And it certainly has no bank accounts or any
16 other interest; doesn't own a single thing. So I
17 didn't know.

18 Q So none of the MaxingU podcasts or Instagram
19 pages have anything to do with MaxingU, the entity that
20 you didn't disclose.

21 A Correct. They have everything to do with
22 Maxed and Matched, Inc.

1 Q Okay. Are you familiar with a business called
2 the Launched Entrepreneur?

3 A Yes, it's a lead generation.

4 Q It's a lead generation, okay. So that's --
5 it's a -- it's an entity, it's a separate entity not
6 associated with Maxed and Matched?

7 A It's -- no, no, no. It's with Maxed and
8 Matched, it's the lead generation. So remember Ronald
9 gets the leads and we service the clients.

10 Q Bu you told me that entity was called Ronald
11 Bodine Consulting that was handling that --

12 A It --

13 Q -- lead generation.

14 A Right. He does handle the lead generation.
15 But I'm saying this is what it's in reference to. This
16 is not a new thing. It's a, it's a DBA.

17 Q So it's doing -- so Ronald Bodine Consulting
18 is doing business as the Launched Entrepreneur?

19 A It's one of the things that we, yeah, do for
20 Maxed and Matched. Yeah.

21 Q Okay. So you're an employee of Launched -- of
22 the Launched Entrepreneur?

1 A Employee of Maxed and Matched. This is our
2 lead generation that we've talked about all day.

3 (Pause.)

4 Q Okay. Bear with me.

5 A Mm-hmm.

6 Q Okay. Well I'm looking at your LinkedIn right
7 now, and I can share my screen so you can see it. I
8 mean, it says -- your LinkedIn says that you've been,
9 you know, a business strategist for the Launched
10 Entrepreneur for four years.

11 So what does that mean, I guess, you haven't
12 disclosed the Launched Entrepreneur in connection with
13 your bankruptcy case. This is the first I'm, you know,
14 hearing of it. So why wasn't this disclosed in
15 connection with your bankruptcy if you are, you know,
16 putting it out to the world that you are working as a
17 business strategist for this company?

18 A Because it's Maxed and Matched. And I already
19 did that. And so the money that you're seeing that
20 comes in from Ronald correlates with this. And so this
21 is our lead generation, right? So when our -- when our
22 investors said that they wanted to see us be able to

1 generate leads and that -- the use of the lead
2 generation idea that I'd been using that was successful
3 -- that they wanted to see it in action, then we had,
4 you know, the lead generation service.

5 And, you know, Ronald helped get the leads for
6 that. And in terms of putting it out into the world,
7 you asked a bit ago about a Jane Rosenberg who paid for
8 us to teach her that strategy. And then you talked
9 about the money that was given there.

10 So this is us being able to teach people that
11 strategy and to help Maxed and Matched be able to
12 generate, you know, what we need to, to prove to
13 investors that we're investible.

14 Q So is Ronald Bodine and Ronald Bodine
15 Consulting doing business as the Launched Entrepreneur?

16 A No. Ronald Bodine Consulting is something
17 separate; that's Ronald's consulting agency. Launched
18 Entrepreneur is a part of Maxed and Matched.

19 Q All right. But any like, dba that you're
20 using, that also needs to be disclosed in connection
21 with your bankruptcy case if, you know -- if you're
22 providing those services as, you know, the Launched

1 Entrepreneur, that -- why wouldn't that have been
2 needed to be disclosed?

3 A Because we have never, ever -- we don't have
4 any -- there's no tax documents, there's no separate
5 bank accounts, there's no nothing else. It's all under
6 Maxed and Matched. So I didn't know what I would be
7 disclosing. And all the money that you've accounted
8 for and went back and forth about, "Well what are
9 this?" "What's this transfer and that transfer?" And
10 all that relates back to this, so there's nothing
11 hidden.

12 MS. EUSTIS: Okay. Can we take five minutes
13 and then we can come back, and I'll probably be able to
14 wrap-up at that time?

15 THE WITNESS: Okay.

16 MS. EUSTIS: Good? Okay.

17 Kevin, we can go off the record now. Thank
18 you.

19 (Brief recess from 1:41 p.m. to 1:46 p.m.)

20 BY MS. EUSTIS:

21 Q Ms. Francois Bodine, again, reminder that you
22 are still under oath. Did you speak with anyone about

1 your testimony today during that brief recess?

2 A No, ma'am.

3 Q Okay, thank you. Just a few follow-up
4 questions. So when we were discussing MM Technologies,
5 I just want to make sure I'm clear. You had indicated
6 that -- I want to get down to know who the members of
7 that entity are today. And I think -- I was a little
8 confused because at one point you indicated that they
9 don't have an interest until their note converts. And
10 so I don't know if you know right now, who, you know,
11 the members of that entity are when you formed it, or
12 what. So do you know, currently, who the members of
13 that LLC are?

14 A So it would be the eight members that I talked
15 to you about. The names I keep saying over -- the
16 Whites, the -- Eric Herr, all that. So those people
17 who did the convertible note originally.

18 And so what we mean by that, that is when they
19 entered into the agreement, they needed -- it had to be
20 set up that if, indeed, there was ever a -- if they
21 were ever going to get stock, that they would get stock
22 through this vehicle of MM Technologies so that it

1 would only show up on our cap table once, as opposed to
2 eight times.

3 Q Okay. So when we follow up today -- or after
4 today, again, I'm going to hold this open. I do want
5 to see the formation documents for MM Technologies,
6 just so I can be clear and get, you know, a listing of
7 who those eight individuals are that we've been talking
8 about just so that I'm clear and have a list of who
9 those individuals are.

10 The second follow-up question is in -- with
11 regard to the Maxed and Matched accounts, and you know,
12 the items that you purchased, you know, for Maxed and
13 Matched for the app, for the podcast: clothing, shoes,
14 bags, antique jewelry, whatever it may be. Where are
15 those items now?

16 A Those items are in our -- are in sort of the,
17 the podcast shootwear closet. So there's like a number
18 of items if they were ever purchased for shoots or
19 anything like that, that we have there. That we'll be
20 able to use for -- to -- to use them in another shoot
21 or sell or rent them or whatever to generate revenue.

22 Q Is that podcast closet, is that in your home?

1 A It, it is. Just like the business address is
2 my home.

3 Q Okay. So do you use the items that you
4 purchased from the Maxed and Matched account in your
5 everyday life?

6 A I do not.

7 Q So they just sit in the closet? The antique
8 jewelry just sits in the closet until you shoot
9 another, you know, video and you decide to wear it for
10 that?

11 A No, ma'am. I think that's incorrect. I want
12 to state for the record that I did say before that the
13 antique jewelry, that payment from Doyle and Doyle, was
14 that month, my payment from the company that was under
15 my monthly allowance that was just paid directly. That
16 is not used for a shoot. I want to be very clear.

17 Q Okay. So excuse me. So then the Gucci items
18 that were purchased, or the items from Nordstrom or
19 Bloomingdales; those just sit in the closet and you
20 don't use them and haven't used them since this shoot?

21 A Yes, ma'am. Unless -- well it's only used in
22 relation to -- so let's say that we do a podcast and

1 then later we do a shoot, well then, those items might
2 be worn twice. Or whether we do a podcast, a shoot and
3 then a live for the business, then it could be worn
4 during the live for the business. But it's not worn
5 outside of those -- outside of those instances. Excuse
6 me.

7 Q Okay. Then other than the Launched
8 Entrepreneur, I understand your testimony that is
9 something that falls under Maxed and Matched and it's
10 not a separate business entity. Are there any other,
11 you know, trade names or anything like that you operate
12 out of or under?

13 A It's -- it's hard to explain. I, I just want
14 to be clear for the record. So when we teach lead
15 generation, we'll teach it to clients. Like if you
16 want to do lead generation on Facebook, like we're
17 doing to grow our app, and you're a startup, he's how
18 you can do it. If, if you want to do lead generation
19 on Instagram, here's how you can do it. If you want to
20 do lead generation on TikTok, here's how you can do it.

21 We might call those things different things,
22 but it -- but they never come from any other avenue

1 than through Ronald's lead generation, which you
2 ultimately see in the bank account. There's no hidden
3 accounts, there's no nothing else. There's no other
4 business name. But it might be a different type of
5 product name that we use.

6 So when you say is there like a moniker or
7 something, or whatever, yes and no. I mean, if you're
8 talking about is there -- are there different products
9 called different things? Yes.

10 Q So I'm just trying to get a sense of it. I
11 mean, the Launched Entrepreneur, I mean, if I had a
12 LinkedIn page and I put that I work for the Launched
13 Entrepreneur, I would think that the Launched
14 Entrepreneur was my employer. I mean, so, so that's --
15 I'm hearing two different things from you. And maybe
16 it's just a disconnect, you know, on my part. But the
17 Launched Entrepreneur, what I see that as is that you
18 provide strategy for the Launched Entrepreneur.

19 So the Launched Entrepreneur, are you the one
20 that's providing these trainings for these people to,
21 you know, like, get this lead -- I forgot your term --
22 lead generation teaching or education? Is that what it

1 is, you're providing those services?

2 A So I'm the teacher of that method through
3 Maxed and Matched, because I -- I don't want there to
4 be a disconnect. But I will try to explain again. I
5 teach those services because that was what was required
6 of our investors, right? So our investors required
7 that of us.

8 And so then we learned how to do it. Then
9 people started asking us how to do it. And so the
10 benefit is, is that we get to now tell our investors,
11 "Look at all the markets that it works in, so it's
12 tried and true. Invest in us, it's going to work
13 here."

14 It also allows us to try to get some income
15 into the business as you see with the transfers, which
16 will allow us to hire our chief technology officer, et
17 cetera, and not have to have a developer in England or
18 California or something like that.

19 So there's that. But I think your question
20 was, am I teaching it. I do teach it. The --

21 Q All right.

22 A Like I taught Ronald.

1 Q So the Launched Entrepreneur has nothing to do
2 with what Ronald is doing under his Ronald Bodine
3 Consulting.

4 A No. He just -- he, he does the -- well what
5 Ronald's doing under Ronald Bodine Consulting, is he
6 does the lead generation for everything that we're
7 doing, right? So I taught him the method. He then
8 goes out and does it instead of me having to spend the
9 time doing it.

10 Q Right. Well and you know, I think this all
11 goes down to the fact that, you know, quite frankly,
12 Maxed and Matched is much more than just an app. I
13 mean, from what you're telling me it's more than app,
14 it's, you know, you teaching your Launched Entrepreneur
15 lead generational skills to other people and getting
16 money in from that. It's your podcast and any, you
17 know, anything that comes in from that. It's much more
18 than an app. I mean, it's -- that's the picture that
19 I'm, you know, seeing from your testimony today. Is
20 that correct?

21 A Yes, ma'am. But it's -- yes and no, ma'am.
22 Because when I think of it, you know -- for instance,

1 when I think of like a Walmart, and like, Walmart
2 services, right? There's like Walmart online, there's
3 Walmart in the store, but Walmart definitely has an
4 Instagram page. They definitely have a Facebook page.
5 Our -- their Facebook and their Instagram pages like,
6 means that Walmart is much bigger than Walmart. It's
7 only the way that they advertise and get people to know
8 who they are.

9 So like, the MaxingU podcast and Instagram is
10 only the way of telling people, "Hey, we're coming out
11 with something. We're the experts in this thing. You
12 want to pay attention to us so you can onboard to our
13 app later."

14 Q Right. But you're -- but from what I'm
15 hearing, your lead -- you know, your lead generation
16 skills isn't part of your app. I mean, that's separate
17 from that, right?

18 A I think -- I see that it is part of the app.
19 Because it's born out of the need for us to be able to
20 do that.

21 Q Okay.

22 A Something on the app, I don't find them to be

1 so distinct. But I hear you. I'm not trying to be,
2 you know, difficult.

3 Q No, that's fine. Okay. So there are no other
4 -- other than the Launched Entrepreneur, there's no
5 other tradenames that could be out there that you
6 operate under?

7 A Well I already -- I kind of answered that.
8 I'm saying if you -- remember when I said the part
9 about, you know, we teach people how to do it on
10 Facebook, Instagram, these different things we might
11 call those different things. If you're saying other
12 than that are there other tradenames? Besides like,
13 business strategy, anything that we use for the lead --
14 we use different names for different things for the
15 lead generation, depending on what people want to
16 learn.

17 So I'm very hesitant to -- it's hard to answer
18 your question unless you're saying you understand that
19 I'm saying what, what I'm saying. You know what I
20 mean? I don't --

21 Q So -- okay. So what is Coach T Business
22 Strategies? Have you heard of that before?

1 A The same thing with Launched Entrepreneur.

2 The same thing. Launched Entrepreneur is a type of
3 lead generation for people who have a certain type of
4 business and they want to learn how to generate leads
5 there. We also do like, Facebook Jumpstart, which is
6 one of the things that you saw that Jane paid for,
7 which at that same time, I said, "These are the lead
8 generation services she paid us to teach her." That's
9 her asking us to teach her how to do it on Facebook.
10 It's all the same thing. It's nothing --

11 Q But you have, I mean, you're out there. Do
12 you have a -- is there a webpage for Coach T Business
13 Strategies where, you know, someone can find you on the
14 internet and go there and you know, get your services?

15 A Yes. We have that page. So people can learn
16 about our lead generation so we can keep figuring that
17 out. I mean, we're able to make -- we're allowed to do
18 that. I don't --

19 Q So I'm just trying to get information. So the
20 Launched Entrepreneur and Coach T Business Strategies
21 is another one. Is there any other, you know, website,
22 tradename, anything like that you use out there to

1 generate business and get business in?

2 A Other than like I keep iterating about like
3 Instagram or Facebook Jumpstart, Instagram Jumpstart,
4 any of those things. Other than that, no, ma'am.

5 Q Okay.

6 A But every -- but the -- but I want to just
7 hone in on this because I know it -- it sounds like a
8 little bit complicated, and we've talked about so many
9 things. Every single thing that you're talking about
10 is something that ends up being a part of the lead
11 generation that Ron does, and a part of that money for
12 those things you see come into Maxed and Matched.

13 Q So if -- let's just say I want some lead
14 generation skills myself. And I find you on the
15 internet and I go to Coach T Business Strategies and I
16 reach out. And I say, "I want to be taught lead
17 generation skills." And I would pay you, let's say,
18 \$5,000 for that. Are you providing those services?

19 A Am I providing them?

20 Q Yeah.

21 A I --

22 Q Are you teaching me lead generation skills?

1 A Likely it would be me that's teaching or some
2 sort of training that I -- that I used when I taught
3 Ron how to do it at Evergreen.

4 Q Okay. And so then the \$5,000 that I would
5 pay, where would I pay that money? If I go to the
6 Coach T Business Strategies website, where would that
7 \$5,000, hypothetically speaking, where would that go?
8 Would that go to --

9 A It would depend on where they were found,
10 right? So if Ron did the lead generation and he did
11 something, so then it would go through Ron's
12 consulting. If they know me from something, like you
13 saw Jane, and she paid directly Maxed and Matched.
14 Then that's how it would be. It depends on how they
15 come to find us.

16 Q Well I'm saying I'm going to the T Business
17 Strategies. I found you on the internet. Coach T
18 Business Strategies website.

19 A Mm-hmm.

20 Q So if I went there, where would that go
21 through?

22 A If you went there, depending on the link that

1 you used, if you -- so if you went directly, it would
2 come to Maxed and Matched. If you used some sort of
3 link that was found on Facebook or Instagram or
4 something like that, it probably would be a lead
5 generation that's attributed to Ronald. So then it
6 would go through Ronald and then it would be one of the
7 things where we capture the portion of money that Ron
8 doesn't capture from.

9 Q Okay. Are there any documents, any
10 agreements, anything that, you know, sets forth this
11 arrangement in terms of where the money goes from what
12 link is clicked?

13 A No, because it'll show up where it shows up.
14 We'll see where it shows up. I mean, if it comes
15 directly to Maxed then you know it's me. If it goes to
16 -- through Ronald, as you see, like a lot of the lead
17 generation's done by Ronald because most of that money
18 is coming in from him, whereas you only saw like two or
19 three things from Jane that were directly to Maxed and
20 Matched.

21 MS. EUSTIS: Okay. Well I have no further
22 questions for today. I am going to hold this open, and

1 I can get with you. I'll send an email to Mr. Brandt.
2 And if you'd like, I can copy you on it directly so
3 that you'll have that information.

4 You know, I -- I know the deadline to object
5 to discharge is the 17th of January. And I know the
6 holidays are coming up. So I don't want you, you know,
7 rushing through that. As soon as you can get the
8 documents to me, then I will review them, you know, and
9 not, you know, waste any time going through that, so --
10 but with that we can -- I'll hold this open.

11 We can go off the record now, Kevin.

12 (Whereupon, at 2:01 p.m., the deposition of
13 TAYLOR MADISON FRANCOIS BODINE was concluded.)

14 * * * * *

15 I have read the foregoing pages, which are a
16 correct transcript of the answers given by me to the
17 questions therein recorded.

18

19 Deponent _____

20

21 Date _____

22

C E R T I F I C A T E

THE UNITED STATES OF AMERICA)
)
IN THE DISTRICT OF COLUMBIA)

I, Kevin E. Carr, Notary Public, before whom the foregoing deposition was taken, do hereby certify that the witness whose testimony appears in the foregoing pages was duly sworn by me; that the testimony of said witness was reported by me by digital record, and thereafter reduced to typewritten form; that said deposition is a true record of the testimony given by said witness; that I am neither counsel for, related to, nor employed by any of the parties to the action in which this deposition was taken; and, further, that I am not a relative or employee of any attorney or counsel employed by the parties thereto, nor financially or otherwise interested in the outcome of this action.

Heidi E. Carr

Kevin E. Carr
Notary Public in and for the
District of Columbia

My commission expires:

October 14, 2023